

Jurisdiction: Texas (State & Fed.)

Question

1. What authorities define a 'pattern or practice' of housing discrimination under 42 U.S.C. § 3614(a)?

The term "pattern or practice" of housing discrimination under [42 U.S.C.A. § 3614](#) (a) is not explicitly defined within the statute itself, but its meaning has been clarified through judicial interpretations and related legislative history. Under § 3614(a), the Attorney General may initiate a civil action when there is reasonable cause to believe that a person or group of persons is engaged in a pattern or practice of resistance to the full enjoyment of rights granted by the Fair Housing Act (FHA), or when a group of persons has been denied rights under the FHA in a manner that raises an issue of general public importance ([42 U.S.C.A. § 3614](#)) [1].

Judicial Interpretations of "Pattern or Practice" in Housing Discrimination

The phrase "pattern or practice" has been interpreted by courts to mean conduct that is not isolated, accidental, or a peculiar departure from an otherwise nondiscriminatory norm. For example, in *United States v. West Peachtree Tenth Corp.*, the Fifth Circuit noted that "pattern or practice" was intended to encompass more than isolated or accidental events, and that the phrase was not meant to be esoteric or overly technical ([U.S. v. West Peachtree Tenth Corp., 437 F.2d 221 \(1971\)](#)) [2]. Similarly, in *United States v. University Oaks Civic Club*, the court held that a "pattern or practice" occurs when discriminatory conduct is not isolated or accidental but reflects a consistent and systematic approach to discrimination ([U.S. v. University Oaks Civic Club, 653 F.Supp. 1469 \(1987\)](#)) [3].

In *United States v. Pelzer Realty Co.*, the Fifth Circuit found that a realtor's repeated discriminatory treatment of Black individuals over several weeks, including repeated remarks and actions, constituted a "pattern or practice" of discrimination, allowing the Attorney General to bring an enforcement action under the FHA ([U.S. v. Pelzer Realty Co., Inc., 484 F.2d 438 \(1973\)](#)) [4]. This case emphasized that a pattern or practice involves systematic and repeated discriminatory conduct rather than isolated incidents.

Legislative History and Broader Interpretations

The legislative history of the FHA and earlier civil rights acts also sheds light on the meaning of "pattern or practice." The phrase was intended to include conduct that goes beyond isolated or accidental events, as noted in hearings before the House Committee on the Judiciary during the passage of the Civil Rights Act of 1960 ([U.S. v. West Peachtree Tenth Corp., 437 F.2d 221 \(1971\)](#)) [2]. This interpretation has been applied to the FHA, as seen in cases like *United States v. West Peachtree Tenth Corp.* and *United States v. Pelzer Realty Co.* ([U.S. v. West Peachtree Tenth Corp., 437 F.2d 221 \(1971\)](#)) [2].

Attorney General's Discretion in Determining "Pattern or Practice"

The Attorney General has significant discretion in determining whether a pattern or practice of housing discrimination exists. In *United States v. Northside Realty Associates, Inc.*, the Fifth Circuit upheld the district court's finding that the Attorney General could reasonably believe that a person or group of persons was engaged in a pattern or practice of violating the FHA ([U.S. v. Northside Realty Associates, Inc.,](#)

518 F.2d 884 (1975)) [5]. This discretion allows the Attorney General to assess whether the conduct in question meets the threshold for initiating a civil action under § 3614(a).

Negative Treatment of U.S. v. Mitchell

It is important to note that the case *United States v. Mitchell*, which addressed a pattern or practice of systematically steering Black tenants to a specific section of an apartment complex, has been superseded by statute as stated in *U.S. v. City of Jackson, Miss.* on February 4, 2004 ( *U.S. v. Mitchell*, 580 F.2d 789 (1978)) [6]. Therefore, while the case provides historical context, its precedential value may be limited.

In summary, a "pattern or practice" of housing discrimination under 42 U.S.C.A. § 3614 (a) refers to systematic, repeated, and non-accidental discriminatory conduct that resists the full enjoyment of rights granted by the FHA. Judicial interpretations and legislative history emphasize that the term encompasses more than isolated or accidental events, and the Attorney General has broad discretion in determining whether such a pattern or practice exists.

Commentary about this question

§ 26:3. § 3614(a): “Pattern or practice” and “General public importance” cases—“Pattern or practice” cases

Housing Discrimination Law and Litigation • Housing Discrimination Law and Litigation § 26:3

Under 42 U.S.C. § 3614(a), a "pattern or practice" of housing discrimination lacks a statutory definition but is modeled on similar provisions from earlier civil rights laws like Title VII. Courts interpret this to require proof that discriminatory conduct is more than isolated or sporadic acts, constituting a defendant's regular policy or standard operating procedure. The Fifth Circuit has clarified that no fixed number of incidents is necessary; cases depend on the totality of facts, including the defendant's overall policy or failure to supervise. Discriminatory management directives or municipal policies also qualify. Group liability exists where multiple defendants collectively engage in discriminatory practices, even absent individual patterns or conspiracies, as demonstrated in Fifth Circuit decisions such as *United States v. Bob Lawrence Realty*. This framework guides enforcement actions by the Attorney General under the Fair Housing Act in federal courts, including those within Texas's jurisdiction.

§ 26:2. § 3614(a): “Pattern or practice” and “General public importance” cases—Overview

Housing Discrimination Law and Litigation • Housing Discrimination Law and Litigation § 26:2

Authorities defining a "pattern or practice" of housing discrimination under 42 U.S.C. § 3614(a) primarily derive from the statutory language of the Fair Housing Act and judicial interpretations. The term is understood within the context of the Attorney General's ability to bring civil actions where there is reasonable cause to believe a defendant or group of defendants engages in recurring discriminatory conduct violating the Act's provisions. The provision demands either a demonstrable "pattern or practice" of resistance or an issue of "general public importance" raised by group denials of rights. The Attorney General's determination of reasonable cause is not subject to judicial review, while courts decide on the existence of a "pattern or practice." The statutory framework and case law emphasize measurable public impact and limit enforcement actions to significant, recurrent violations rather than isolated incidents. This interpretation aligns with federal enforcement standards applicable in Texas federal and state jurisdiction.

§ 429. "Pattern or practice" suits brought by Attorney General under Fair Housing Act

American Jurisprudence, Second Edition • 15 Am. Jur. 2d Civil Rights § 429

Authorities define a “pattern or practice” of housing discrimination under 42 U.S.C. § 3614(a) as conduct that is more than isolated or accidental, requiring repeated, routine, or generalized denial of rights. Proof requires establishing discrimination as the defendant’s standard operating procedure rather than sporadic acts. There is no fixed number of incidents needed; each case depends on individual facts and the nature of the rights involved. A pattern can be shown by a combination of statistical evidence, documented policies, and specific discriminatory acts without the necessity of proving uniform unlawful conduct, conspiracy, or intent. The government’s burden is a preponderance of evidence showing a regular, rather than unusual, discriminatory practice. This interpretation aligns with federal enforcement standards applicable to suits brought by the Attorney General under the Fair Housing Act, including jurisdictional considerations pertinent to Texas federal courts.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 3614. Enforcement by Attorney General

42 USCA § 3614

"...(a) Pattern or practice cases Whenever the Attorney General has reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of resistance to the full enjoyment of any of the rights granted by this subchapter, or that any group of persons has been denied any of the rights granted by this subchapter and such denial raises an issue of general public importance, the Attorney General may commence a civil action in any appropriate United States district court. (b) On referral of discriminatory housing practice or conciliation agreement for enforcement (1)(A) The Attorney General may commence a civil action in any appropriate United States district court for appropriate relief with respect to a discriminatory housing practice referred to the Attorney General by the Secretary under section 3610(g) of this title. (B) A civil action under this paragraph may be commenced not later than..."

2. U.S. v. West Peachtree Tenth Corp.

United States Court of Appeals, Fifth Circuit. • January 04, 1971 • 437 F.2d 221 • 1971 WL 301936

"...Post-Act 'pattern or practice' We turn now to the question whether the 1969 acts of discrimination against Pitts and Threadcraft were isolated incidents or part of a pattern or practice of discrimination under the Fair Housing Act of 1968. The Act does not define 'pattern or practice', and the phrase is not explained by the legislative history. Relevant, however, are judicial and legislative interpretations of the phrase under earlier civil rights acts, such as the Civil Rights Act of 1960, 42 U.S.C.A. 1971(e). The words 'pattern or practice' were not intended to be esoteric words of art. There is nothing magic in their meaning. *United States v. Mayton*, 5 Cir. 1964, 335 F.2d 153, 158-159. To be sure, they were intended to encompass more than an 'isolated or accidental or peculiar event.' See Hearings on H.R. 10327 Before the House Committee on the Judiciary, 86th Cong., 2d Sess. 13; *United States v. Mayton*, supra, at 158-159...."

"...When there is a finding of pattern or practice of discrimination by landlord before effective date of Fair Housing Act of 1968 and little or no evidence indicates a post-Act change in such pattern or practice up to the time suit is filed, strong inference that the pre-Act pattern or practice continued after the effective date of the Act arises and while such evidence alone does not create prima facie case of post-Act pattern or practice, it is of significant probative value. Fair Housing Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

"...In determining whether landlord has engaged in pattern or practice of racial discrimination in the rental of housing in violation of the Fair Housing Act, the number of blacks actually turned away or discriminated against is not determinative. Fair Housing Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

"...Evidence that operator of apartment unit had admitted to applicant for housing the existence of policy of discrimination and that same applicant was told after the effective date of the Fair Housing Act that his "status" remained unchanged, and that operator failed to advise black applicants of the security deposit prerequisite to consideration of their applications established "pattern or practice" of discrimination after the effective date of Fair Housing Act. Fair Housing Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

3. U.S. v. University Oaks Civic Club

United States District Court, S.D. Texas, Houston Division. • February 20, 1987 • 653 F.Supp. 1469

"..."Pattern or practice," for purposes of determining whether homeowners engaged in "pattern or practice" of racial discrimination in housing, occurs when discriminatory conduct of homeowners was not isolated, accidental or peculiar departure from otherwise nondiscriminatory norm. Civil Rights Act of 1968, SS 801 et seq., 813, as amended, 42 U.S.C.A. SS 3601 et seq., 3613...."

"...Conclusions of Law. 5. In a case in which the plaintiff has sufficiently proved a pattern or practice of racial discrimination in housing, a court . "has not merely the power but the duty to render a decree which will so far as possible eliminate the discriminatory effects of the past as well as bar like discrimination in the future." Louisiana v. United States, 380 U.S. 145, 154, 85 S.Ct. 817, 822, 13 L.Ed.2d 709 (1965). However, the Court is persuaded that the case at bar is simply inappropriate for the judicial intervention which the Government seeks. The Government has demonstrated no pattern or practice of racial discrimination in housing whatsoever. Rather, any alleged violation of the act resulting from the ballots extending the deed restrictions was an aberration, at most, an accidental departure from a long standing policy of openness and racial equality in housing. This conclusion can only be self-evident. The testimony of John Baust clearly indicated that the University Oaks subdivision is a highly integrated community comprised of an extensive minority population. This community is hardly characteristic of the perpetrators of discrimination that the Fair Housing Act has focused upon in the past...."

"...In order for the Government to prevail on the merits and obtain declaratory and injunctive relief in action brought under the Fair Housing Act against homeowners of subdivision based on restrictive covenant prohibiting sale of lots to non-Caucasians, the Government must show that homeowners either engaged in "pattern or practice" of resistance to full enjoyment of right to equal housing opportunity or denied rights granted by the Fair Housing Act to group of persons the Attorney General has determined that such denial raises issue of general public importance. Civil Rights Act of 1968, SS 801 et seq., 813, as amended, 42 U.S.C.A. SS 3601 et seq., 3613...."

4. U.S. v. Pelzer Realty Co., Inc.

United States Court of Appeals, Fifth Circuit. • September 05, 1973 • 484 F.2d 438

"...Where Government's case against realtor charged with violating Fair Housing Act was not based on a single remark to blacks during a long series of negotiations, and was not based on off-hand comment made to one person on a single occasion, but rather was based on treatment received by blacks over a period of several weeks, and several of remarks were repeated by different people at different times, and realtor had plenty of time to reflect on deals he offered blacks, realtor's actions qualified as "pattern or practice" so as to allow Attorney General to bring enforcement action. Civil Rights Act of 1968, S 813, 42 U.S.C.A. S 3613...."

"...IV .Enforcement by the Attorney General. In view of our finding that the Attorney General could reasonably have believed that a pattern or practice of discrimination was engaged in, we need not reach the question of whether there was reason to believe that a group of persons had been denied rights guaranteed by the Fair Housing Act...."

"...Civil action by federal Government against realtor based on alleged violation of Fair Housing Act. The United States District Court for the Middle District of Alabama, at Montgomery, Robert E. Varner, J., dismissed complaint, and the Government appealed. The Court of Appeals, Lewis R. Morgan, Circuit Judge, held that realtor committed at least three violations of the act, that realtor's actions qualified as pattern or practice so as to permit Attorney General to bring enforcement action, and that finding that realtor did not refuse to sell houses to blacks was clearly erroneous. Reversed and remanded...."

5. U.S. v. Northside Realty Associates, Inc.

United States Court of Appeals, Fifth Circuit. • September 04, 1975 • 518 F.2d 884

"...Record disclosed that district court did not err in finding that the Attorney General could have reasonable cause to believe that a person or group of persons was engaged in a pattern or practice of violating the Fair Housing Act in connection with operation of corporate real estate firm. Civil Rights Act of 1968, S 813, 42 U.S.C.A. S 3613...."

"...We continue to hold that under 42 U.S.C. s 3613 what is an issue of general public importance is within the Attorney General's discretion. See note 6, supra. To the extent that the issue of pattern or practice is in the case, we continue to hold that our review of the matter shows that the District Court did not err in finding that the Attorney General could have reasonable cause to believe that a person or group of persons was engaged in a pattern or practice of violating the Fair Housing Act...."

6. U.S. v. Mitchell

United States Court of Appeals, Fifth Circuit. • September 21, 1978 • 580 F.2d 789 • 1978 WL 519115

"...Attorney General's suit under Fair Housing Act was proper where challenged conduct consisted of pattern or practice of systematically steering black tenants to distinct section of apartment complex and where such pattern was not isolated, accidental or peculiar event. Civil Rights Act of 1968, SS 804(a), 813, 42 U.S.C.A. SS 3604(a), 3613...."

7. § 3602. Definitions

42 USCA § 3602

"...As used in this subchapter-- (a) "Secretary" means the Secretary of Housing and Urban Development. (b) "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. (c) "Family" includes a single individual. (d) "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries. (e) "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (f) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of thisf) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title...."

8. **Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.**

Supreme Court of the United States • June 25, 2015 • 576 U.S. 519 • 135 S.Ct. 2507

"...Unlawful practices under the Fair Housing Act (FHA) include zoning laws and other housing restrictions that function unfairly to exclude minorities from certain neighborhoods without any sufficient justification. Civil Rights Act of 1968, SS 804(a), 805(a), 42 U.S.C.A. SS 3604(a), 3605(a)...."

9. **Dews v. Town of Sunnyvale, Tex.**

United States District Court, N.D. Texas, Dallas Division. • August 01, 2000 • 109 F.Supp.2d 526 • 2000 WL 1159244

"...Complaint of ongoing violations, when filed under Fair Housing Act, is timely if filed within 180 days of last asserted occurrence of unlawful practice. Civil Rights Act of 1968, S 813(a), as amended, 42 U.S.C.A. S 3613(a). ..."

10. **§ 100.20 Definitions.**

24 CFR § 100.20

"...Discriminatory housing practice means an act that is unlawful under section 804, 805, 806, or 818 of the Fair Housing Act...."

"...The terms Department, Fair Housing Act, and Secretary are defined in 24 CFR part 5. Aggrieved person includes any person who- (a) Claims to have been injured by a discriminatory housing practice; or (b) Believes that such person will be injured by a discriminatory housing practice that is about to occur. Broker or Agent includes any person authorized to perform an action on behalf of another person regarding any matter related to the sale or rental of dwellings, including offers, solicitations or contracts and the administration of matters regarding such offers, solicitations or contracts or any residential real estate-related transactions. Discriminatory housing practice means an act that is unlawful under section 804, 805, 806, or 818 of the Fair Housing Act. Dwelling means any

building, structure or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant..."

11. **Inclusive Communities Project, Incorporated v. Lincoln Property Company**

United States Court of Appeals, Fifth Circuit. • April 09, 2019 • 920 F.3d 890 • 2019 WL 1529692

"...Fair Housing nonprofit organization's allegations that policy of owners and manager of apartment complexes of not accepting Section 8 housing vouchers was synonymous with a "no black tenants" policy and that owners and manager failed to respond to organization's letters offering financial incentives and guarantor provisions to rent to African American voucher recipients were insufficient to support a reasonable inference of intentional race discrimination, as required to state a prima facie case of disparate treatment under Fair Housing Act; linkage between Section 8 vouchers and black tenants was based only on speculation, assumptions, and stereotypes that the voucher population in the metropolitan area was disproportionately black, and there were no allegations supporting the claimed general existence of an otherwise qualified pool of voucher recipients. 42 U.S.C.A. S 3604(a)...."

12. **Inclusive Communities Project, Inc. v. Texas Dept. of Housing and Community Affairs**

United States District Court, N.D. Texas, Dallas Division. • September 28, 2010 • 749 F.Supp.2d 486 • 2010 WL 3766714

"...Statistical analysis is admissible to establish disparate impact discrimination under the FHA. Fair Housing Act, SS 804(a), 805(a), 42 U.S.C.A. SS 3604(a), 3605(a)...."

13. **Young v. Pierce**

United States District Court, E.D. Texas, Paris Division. • July 31, 1985 • 628 F.Supp. 1037

"...The Motions for Summary Judgment. Handbook for Implementation of Affirmative Fair Housing Marketing Regulations 3 (June 1973) (Plaintiffs' Summary Judgment Exhibit 21) (hereinafter cited as Handbook). The Handbook goes on to state that the Equal Opportunity Staff will conduct compliance reviews of the Fair Housing Plan throughout the life of the HUD mortgage. Id. at 5. As the then General Counsel of HUD succinctly wrote at the time these regulations were promulgated, "Clearly, the availability of low-and moderate-income housing outside an area of minority concentration means nothing to residents of that area who never learn of it." Maxwell, supra, at 101...."

14. **Inclusive Communities Project, Inc. v. Heartland Community Association, Inc.**

United States District Court, N.D. Texas, Dallas Division. • August 07, 2019 • 399 F.Supp.3d 657 • 2019 WL 3716442

"...If a plaintiff alleging disparate impact under Fair Housing Act (FHA) makes a prima facie case of discrimination due to a defendant's practice and defendant proves that policy was necessary to achieve substantial, legitimate,

nondiscriminatory interests, the plaintiff must show the defendant's interests could be served by another practice that has a less discriminatory effect. 42 U.S.C.A. S 3604(a); 24 C.F.R. S 100.500(c)(3)...."

15. § 103.5 Other civil rights authorities.

24 CFR § 103.5

"...In addition to the Fair Housing Act, other civil rights authorities may be applicable in a particular case. Thus, where a person charged with a discriminatory housing practice in a complaint filed under section 810 of the Fair Housing Act is also prohibited from engaging in similar practices under title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d-2000d-5), section 109 of the Housing and Community Development Act of 1974 (42 U.S.C. 5309), Executive Order 11063 of November 20, 1962, on Equal Opportunity in Housing (27 FR 11527-11530, November 24, 1962), section 504 of the Rehabilitation Act of 1973 (29 U.S.C. 794), the Age Discrimination Act (42 U.S.C. 6101) or other applicable law, the person may also be subject to action by HUD or other Federal agencies under the rules, regulations, and procedures prescribed under title VI (24 CFR parts 1 and 2), section 109 (24 CFR 570.602)), Executive Order 11063 (24 CFR part 107), section 504 (24 CFR part 8), or other applicable law...."

Additional Research on This Topic

16. Arredondo v. Village on the Lake, LTD

Court of Appeals of Texas, Houston (14th Dist.). • December 14, 2023 • 681 S.W.3d 853 • 2023 WL 8631465

"...Under step one of the three-step, burden-shifting framework for analyzing a disparate impact claim under the Fair Housing Act (FHA) or Texas Fair Housing Act (TFHA), a plaintiff must provide prima facie evidence of (1) the occurrence of certain outwardly neutral practices and (2) a significantly adverse or disproportionate impact on persons of a particular type produced by the defendant's facially neutral acts or practices. 42 U.S.C.A. S 3604; Tex. Prop. Code Ann. S 301.001 et seq...."

17. 🚩 § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination3) For purposes of this subsection, discrimination includes-- (C) in connection with the design and construction of covered multifamily dwellings for

first occupancy after the date that is 30 months after September 13, 1988, a failure to design and construct those dwellings in such a manner that--..."

18. § 3607. Religious organization or private club exemption

42 USCA § 3607

"...(2) As used in this section, "housing for older persons" means housing-- (C) intended and operated for occupancy by persons 55 years of age or older, and-- (ii) the housing facility or community publishes and adheres to policies and procedures that demonstrate the intent required under this subparagraph; and..."

"...(a) Nothing in this subchapter shall prohibit a religious organization, association, or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, or national origin. Nor shall anything in this subchapter prohibit a private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members. (b)(1) Nothing in this subchapter limits the applicability of..."

19. § 3617. Interference, coercion, or intimidation

42 USCA § 3617

"...It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by section 3603, 3604, 3605, or 3606 of this title...."

20. § 3613. Enforcement by private persons

42 USCA § 3613

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

"...Upon application by a person alleging a discriminatory housing practice or a person against whom such a practice is alleged, the court may--..."

Administrative decisions and guidance

8-2.231 - Housing and Civil Enforcement Section-Fair Housing Act

March 01, 2018 • U.S. Justice Manual 8-2.231 • 1999 WL 33219814

"...OF CIVIL RIGHTS CIVIL STATUTES March 2018 8-2.231 - Housing and Civil Enforcement Section--Fair Housing Act The Housing and Civil Enforcement Section has primary responsibility for investigating alleged violations of the Fair Housing Act and bringing suit to enforce the statute. The Fair Housing Act forbids discrimination based on race, color, religion, sex, familial status (families with..."

"...or disability in the sale, rental, advertising, or financing of housing. Practices forbidden by the Fair Housing Act include not only the direct refusal to sell, rent, or finance, but also more sophisticated forms of discrimination such as blockbusting, racial steering, redlining, discriminating in zoning or land-use decisions, and providing false information about housing availability. In addition, with respect to individuals with disabilities, discrimination..."

"...The Department of Justice and the United States Department of Housing and Urban Development (HUD) share enforcement responsibility with respect to individual claims brought under the Fair Housing Act. HUD is authorized to receive and investigate individual complaints of discrimination and to attempt to obtain voluntary compliance with the Fair Housing Act through conciliation. In the event that the conciliation process fails, HUD may, upon finding reasonable cause to believe discrimination occurred, issue administrative charges alleging a Fair Housing..."

"...Rights Division on behalf of complainants are often referred to as "election" cases. Additionally, under the Fair Housing Act, HUD is required to refer to the Attorney General..."

AUTHORITY OF DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT TO INITIATE ENFORCEMENT ACTIONS UNDER THE FAIR HOUSING ACT AGAINST OTHER EXECUTIVE BRANCH AGENCIES

May 17, 1994 • 18 U.S. Op. Off. Legal Counsel 101 • 1994 WL 810702

"...Office of Legal Counsel U.S. Department of Justice AUTHORITY OF DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT TO INITIATE ENFORCEMENT ACTIONS UNDER THE FAIR HOUSING ACT AGAINST OTHER EXECUTIVE BRANCH AGENCIES May 17, 1994 Because..."

"...of powers concerns would be raised by construing the Fair Housing Act to authorize the Department of Housing and Urban Development to initiate enforcement proceedings against other executive..."

"...an express statement that Congress intended HUD to have such authority. Because the Act does not contain such an express statement, it does not grant HUD this authority. There is no basis for construing the Act so that..."

"...between the Department of Agriculture ("USDA") and the Department of Housing and Urban Development ("HUD") regarding "whether a Federal agency, such as USDA, may be a respondent under the enforcement process contained in sections 810-812 and [814] of [the Fair Housing Act, 42 U.S.C. §§ 3601-3619 ("the Act")], 42 U.S.C. §§ 3610-3612, 3614." FN;B1 [FN1] FN;F1 Applying..."

RELATIONSHIP BETWEEN DEPARTMENT OF JUSTICE ATTORNEYS AND PERSONS ON WHOSE BEHALF THE UNITED STATES BRINGS SUITS UNDER THE FAIR HOUSING ACT

January 20, 1995 • 19 U.S. Op. Off. Legal Counsel 1 • 1995 WL 944020

"...WHOSE BEHALF THE UNITED STATES BRINGS SUITS UNDER THE FAIR HOUSING ACT January 20, 1995 When the Department of Justice undertakes..."

"...a civil action on behalf of a complainant alleging a discriminatory housing practice under the Fair Housing Act, Department attorneys handling the action do not enter into..."

"...the United States institutes civil actions pursuant to the Fair Housing Act, as amended. 42 U.S.C. §§ 3604 3616a Description of the program The Fair Housing Act uses the resources of the federal government to address housing discrimination against private persons. Persons alleging a discriminatory housing..."

"...suit to enforce the terms of such an agreement. Subsection 3614(a) authorizes the Attorney General to file suits alleging a pattern or practice of violations of the chapter; subsection (d) of this section authorizes the courts, in either a pattern or practice case or a case filed upon a referral by the..."

Additional secondary sources

§ 28. Discrimination in housing

Texas Jurisprudence, Third Edition • 12 Tex. Jur. 3d Civil Rights § 28

Title VIII and Title IX of the Civil Rights Act of 1968, commonly called the "Fair Housing Act," constitute a detailed housing law, applicable to a broad range of discriminatory practices. Except as otherwise exempted, the Fair Housing Act makes unlawful discrimination in the sale or rental of housing because of race, color, religion, sex, familial status, or national origin or handicap. The Act contains prohibitions dealing respectively with: refusal to deal; discrimination in terms; discriminatory advertising; false representations of availability of a dwelling for sale or rental; and representations, whether true or false, if made for profit, regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, handicap, familial status, disability, or national origin. The last prohibition is intended to protect the owner and to prevent the panic selling that is inimical to the purposes of the Act. The Act also...

"...What constitutes " pattern or practice " of racial discrimination in sale or rental of housing within meaning of provision of Fair Housing Act of 1968 (42 U.S.C.A. sec. 3613) authorizing Attorney General to bring civil action for preventive relief against such conduct, 13 A.L.R. Fed. 285..."

"...For a discussion of a general civil rights statute applicable to racial discrimination in the rental and sale of property, 42 U.S.C.A. § 1982, see §§ 19, 21, 49..."

"...To prove housing discrimination under the Federal Fair Housing Act (FHA) and the Texas Fair Housing Act (TFHA), a plaintiff may show either disparate treatment or disparate impact on a protected class...."

"...Except as otherwise exempted, the Fair Housing Act makes unlawful discrimination in the sale or rental of housing because of race, color, religion, sex, familial status, or national origin or handicap...."

What constitutes "pattern or practice" of racial discrimination in sale or rental of housing within meaning of provision of Fair Housing Act of 1968 (42 U.S.C.A. § 3613) authorizing attorney general to bring civil action for preventive relief against such conduct

American Law Reports ALR Federal • 13 A.L.R. Fed. 285 (Originally published in 1972)

This annotation collects the cases which have discussed the question of whether and under what circumstances particular conduct by a person or group of persons constitutes a "pattern or practice" of discrimination in the sale or rental of housing within the meaning of 42 U.S.C.A. § 3613, which is part of the Fair Housing Act of 1968. Section 3613 provides in pertinent part that: Whenever the Attorney General has reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of resistance to the full enjoyment of any of the rights granted by this title [42 U.S.C.A. §§ 3601-3619] . . . he may bring a civil action in any appropriate United States district court by filing with it a complaint setting forth the facts and requesting such preventive relief, including an application for a permanent or temporary injunction, restraining order, or other order against the person or persons responsible for such pattern or practice. . . as he...

"...The "rights granted" by the Fair Housing Act as referred to in § 3613, include the right to be free from discrimination in the sale or rental of housing (42 U.S.C.A. § 3604, which is discussed infra in §§ 3-5), in the financing of housing (42 U.S.C.A...."

"...This annotation does not include cases which merely cite 42 U.S.C.A. § 3613 or merely recite or paraphrase the terms of 42 U.S.C.A. § 3613 without discussing what constitutes a pattern or practice as that term is used therein...."

"...In denying a defendant's motion for summary judgment because there were material issues of fact concerning whether the alleged representations of the defendant's real-estate salesman violated the "blockbusting" provision of the Fair Housing Act of 1968, and were sufficient to constitute a pattern or practice within the meaning of § 3613, the court in *United States v Mitchell* (1971, DC Ga) 327 F Supp 476, looked to (1) the construction of that phrase as used in § 3613, in *United States v Mintzes* (1969, DC Md) 304 F Supp 1305, supra;..."

"...8] For this reason the courts have sought other relevant interpretations of that phrase, and a number of them have looked to the decision of the United States Court of Appeals for the Fifth Circuit in *United States v Mayton* (1964, CA5 Ala) 335 F2d 153, where, in construing the term " pattern or practice" as used in 42 U.S.C.A. § 1971(e), which was a section of the Civil Rights Act of 1960 requiring that the court determine whether a denial of voting rights is the result of a pattern..."

§ 11:543. Commencement of fair housing action based on pattern or practice of resistance to full enjoyment of rights

Federal Procedure, Lawyers Edition • 6 Fed. Proc., L. Ed. § 11:543

The Attorney General may commence a civil action when the Attorney General has reasonable cause to believe that a person or group of persons is engaged in a "pattern or practice" of resistance to the full enjoyment of any of the rights granted by Title VIII of the Civil Rights Act of 1968 (42 U.S.C.A. §§ 3601 to 3619). To fulfill the "pattern or practice" requirement of 42 U.S.C.A. § 3614, the discrimination must result from more than an isolated, accidental, or peculiar departure from a nondiscriminatory norm. The number of incidents necessary to show a "pattern or practice" depends upon the nature of the right protected and the nature of the ordinary violations of that right. There is no threshold or minimum number of incidents that must occur before the government may initiate litigation, but a single incident of discrimination, standing alone, does not justify the finding of a "pattern or practice." The existence of a discriminatory policy, statute, or ordinance...

"...Whenever the Secretary of Housing and Urban Development has reason to believe that a basis may exist for the commencement of proceedings against any respondent in pattern or practice cases under 42 U.S.C.A. § 3614(a) of the Fair Housing Act, the Secretary must transmit the information upon which that belief is based to the Attorney General or to other appropriate authorities..."

"...[1] To fulfill the " pattern or practice" requirement of 42 U.S.C.A. § 3614, the discrimination must result from more than an isolated, accidental, or peculiar departure from a nondiscriminatory norm.[...]"

"...What constitutes " pattern or practice" of racial discrimination in sale or rental of housing within meaning of provision of Fair Housing Act of 1968 (42 U.S.C.A. sec. 3613) authorizing Attorney General to bring civil action for preventive relief against such conduct, 13 A.L.R. Fed. 285..."

"...It is not necessary to prove an individual " pattern or practice," a conspiracy, or concerted action before the Attorney General may sue for a group " pattern or practice" of discrimination.[...]"

Current awareness

Labor and employment roundup for the week ending November 11

WESTLAW Labor and Employment Daily Briefing • 2016 WL 6659098

Here are some recent highlights in employment-related litigation involving government agencies, safety enforcement actions, and state and federal legislation and regulations.

"...Discrimination..."

"...The commission says Bayou City Wings has violated the Age Discrimination in Employment Act, 29 U.S.C.A. § 621, since at least 2008 by telling managers not to recruit or hire older workers for "front-of- house" positions and firing a manager who refused to comply...."

"...The agency sued Mathews Management Co. and Peach Orchard Inc. in July accusing them of violating the Americans with Disabilities Act, 42 U.S.C.A. § 12101, by terminating the unnamed employee and requiring employees to report their use of prescription medications...."

"...A Houston-based restaurant chain has engaged in a pattern or practice of choosing not to hire applicants who are 40 or older to work as hosts and servers, the Equal Employment Opportunity Commission alleges in a federal lawsuit...."

U.S. says medical center biased against personnel who object to abortion

WESTLAW Health Daily Briefing • 2021 WL 82972

The University of Vermont Medical Center violated federal law by compelling health care workers to assist with abortions despite their religious or moral objections, according to a U.S. Justice Department lawsuit in Vermont federal court.

"...Discrimination..."

"...The government filed suit Dec. 16 in the U.S. District Court for the District of Vermont, saying UVMMC flouted a statute known as the Church Amendments, 42 U.S.C.A. § 300a-7(c)(1), which prohibits federal grant recipients from discriminating against health care workers who refuse to assist with abortion because of their religious or moral beliefs...."

"...UVMMC has a pattern and practice of discriminating against conscientious objectors to abortion and has allegedly scheduled 10 objecting nurses to assist with 20 abortion procedures, according to the suit...."

"...In response to the two HHS letters, UVMMC issued a statement Dec. 16 describing the government's allegations as "baseless" and "an abrupt turnaround," saying HHS had agreed not to recommend any further enforcement following recent federal court decisions rejecting the agency's "novel" interpretation of the law...."

JetBlue flight attendants' sexual assault suit transferred to Massachusetts

WESTLAW Labor and Employment Daily Briefing • 2020 WL 5046935

A New York federal judge has transferred to Massachusetts federal court a sexual assault suit that a pair of Boston-based JetBlue flight attendants brought against the air carrier and two of its pilots.

"...They also asserted violations of New York state and local laws and the laws of Puerto Rico, as well as tort claims against the pilots, including assault and battery...."

"...The judge said the plaintiffs attempted to circumvent this fact by claiming that JetBlue's " pattern and practice ... of routinely ignoring employee complaints" of sexual assault or harassment springs from the company's New York headquarters...."

"...As a result, the plaintiffs say, they stopped working flights involving Embraer E190 aircraft because Johnson and Watson flew them, lowering the attendants' number of flights and compromising their seniority status and income...."

"...As for the plaintiffs' state and local law claims, Judge Garaufis said most of the potential witnesses are located in Puerto Rico, where the alleged assault occurred, or in Boston, where the airline investigated the allegations...."

Follow-up question

2. Can constructive eviction of a disabled tenant constitute discrimination or retaliation under the Fair Housing Act?

Constructive eviction of a disabled tenant can constitute discrimination or retaliation under the Fair Housing Act (FHA) if the landlord's actions materially interfere with the tenant's ability to use and enjoy the premises and are motivated by discriminatory intent or retaliatory conduct. The FHA prohibits discrimination against individuals based on their disability and requires landlords to make reasonable accommodations to ensure equal access to housing. Additionally, the FHA prohibits retaliation against tenants for exercising their rights under the Act.

Constructive Eviction and Discrimination Under the FHA

Constructive eviction occurs when a landlord's conduct materially interferes with a tenant's beneficial use of the premises, causing the tenant to vacate the property ([Arredondo v. Village on the Lake, LTD](#), 681 S.W.3d 853 (2023)) [1]. Under the FHA, discrimination against disabled individuals in housing can be established by showing either discriminatory intent, treatment, or significant discriminatory effect ([Ryan v. Ramsey](#), 936 F.Supp. 417 (1996)) [2]. Discrimination includes actions that make housing unavailable or deny a dwelling to a person because of their disability or their association with a disabled person ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), 86 F.4th 1108 (2023)) [3], ([42 U.S.C.A. § 3604](#)) [4]. For example, in [Chavez v. Aber](#), a landlord's refusal to renew a lease on terms similar to those offered to non-disabled tenants, coupled with harassment and eviction proceedings, was deemed adverse conduct supporting a prima facie case of retaliation under the FHA ([Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [5].

Retaliation and Constructive Eviction Under the FHA

The FHA also prohibits retaliation against tenants who exercise their rights under the Act. [Section 3617](#) makes it unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of their rights under the FHA ([42 U.S.C.A. § 3617](#)) [6]. Retaliatory actions, such as filing eviction proceedings or engaging in harassment, can constitute violations of the FHA if they are connected to the tenant's protected activity, such as requesting reasonable accommodations for a disability ([Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [5]. In [Chavez v. Aber](#), the court found that the landlord's actions, including filing eviction suits and refusing to renew the lease, were retaliatory and violated the FHA ([Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [5].

Reasonable Accommodation and Causal Nexus

The FHA requires landlords to make reasonable accommodations in rules, policies, practices, or services when such accommodations are necessary to afford disabled individuals an equal opportunity to use and enjoy a dwelling ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), 86 F.4th 1108 (2023)) [3], ([42 U.S.C.A. § 3604](#)) [4]. However, there must be a causal link between the tenant's disability and the landlord's conduct for the duty to provide reasonable accommodation to arise. For instance, in [Heinert v. Wichita Falls Housing Authority](#), the court held that no reasonable accommodation was required when the tenant's eviction was based on conduct unrelated to their disability, as there was no

causal nexus between the disability and the eviction ([Heinert v. Wichita Falls Housing Authority](#), 441 S.W.3d 810 (2014)) [7].

Retaliation and Discrimination in Constructive Eviction Cases

Constructive eviction can also be actionable under the FHA if it is tied to discriminatory or retaliatory motives. In [Woods-Drake v. Lundy](#) , the court held that a landlord's threats to evict tenants for hosting black guests constituted discrimination under the FHA and [Section 1982](#) , as race was a significant factor in the landlord's decision to evict ([Woods-Drake v. Lundy](#), 667 F.2d 1198 (1982)) [8]. Similarly, in [Chavez v. Aber](#) , the landlord's actions, including eviction proceedings and harassment, were found to be retaliatory and discriminatory under the FHA because they were in response to the tenant's request for a reasonable accommodation for her disabled son ([Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [5].

Limitations on Constructive Eviction Claims Under the FHA

While constructive eviction can be actionable under the FHA, courts have held that it must implicate the availability of housing rather than merely its habitability. In [AHF Community Development, LLC v. City of Dallas](#) , the court concluded that [Section 3617](#) applies only to conduct that makes housing unavailable, not merely less habitable ([AHF Community Development, LLC v. City of Dallas](#), 633 F.Supp.2d 287 (2009)) [9]. This distinction is critical in determining whether a constructive eviction claim can be brought under the FHA.

In summary, constructive eviction of a disabled tenant can constitute discrimination or retaliation under the FHA if the landlord's actions are motivated by discriminatory intent or retaliatory conduct and materially interfere with the tenant's ability to use and enjoy the premises. However, the tenant must demonstrate a causal nexus between their disability and the landlord's conduct to establish a violation of the FHA.

Commentary about this question

§ 7:8. Fair Housing Act—Nondiscrimination and reasonable accommodation

Disabilities and the Law • Rothstein, *Disabilities and the Law* § 7:8 (5th ed.)

This legal text explicates key provisions of the Fair Housing Act (FHA) related to nondiscrimination and reasonable accommodation for individuals with disabilities. It addresses the prohibition of discriminatory practices against tenants with disabilities, encompassing eviction processes and the requirement for landlords to make reasonable accommodations, including in cases involving behavioral or conduct issues linked to disabilities. The text cites cases where courts have required individualized assessments to determine whether eviction is discriminatory or retaliatory when a tenant's conduct stems from a disability. It further discusses how modification of policies and practices, as well as structural alterations, must be reasonably accommodated under the FHA, highlighting the balance between safety or disruption concerns and disability protections. This framework applies federally and is pertinent to Texas as FHA governs both state and federal housing discrimination law, thereby directly relating to potential claims of constructive eviction implicating discrimination or retaliation.

§ 503. Actual or constructive eviction

American Jurisprudence, Second Edition • 49 Am. Jur. 2d Landlord and Tenant § 503

Constructive eviction occurs when a landlord's wrongful acts substantially deprive a tenant of the beneficial use and enjoyment of leased premises, compelling the tenant to abandon the property within a reasonable time. This legal concept involves a material and permanent interference with possession or enjoyment sufficient to breach the implied covenant of quiet enjoyment. Essential elements include the landlord's intent to deprive use, a substantial interfering act, resulting deprivation of use, and tenant abandonment. Although this framework primarily addresses landlord-tenant disputes, it delineates when landlord conduct crosses from interference to eviction. The analysis centers on materiality and landlord intent, emphasizing that not all interferences qualify as constructive eviction. While the document clarifies landlord-tenant rights and eviction standards, it does not specifically address whether constructive eviction may be viewed as disability discrimination or retaliation under the Fair Housing Act in Texas or federal contexts. Nonetheless, it provides foundational understanding of constructive eviction as a severe breach of tenant rights.

Cause of Action Against Residential Landlord for Wrongful Eviction

Causes of Action Second Series • 90 Causes of Action 2d 185 (Originally published in 2019)

Constructive eviction occurs when a landlord's actions substantially interfere with a tenant's use and enjoyment of the rental property, effectively forcing the tenant to vacate. Such acts include unlawful alterations, utility shutoffs, and barriers preventing access. Retaliatory eviction arises when the landlord's eviction is motivated by the tenant exercising rights, such as reporting code violations or requesting repairs. Courts have recognized retaliatory eviction as a viable cause of action, including in Texas, where tenants are protected from eviction after complaining to authorities. Wrongful eviction claims may be brought even if the eviction appears facially valid but is a pretext for retaliation. Although the document discusses wrongful and retaliatory evictions extensively, it references state and federal recognition of tenants' protections, including Texas caselaw, relating to constructive and retaliatory evictions. However, no explicit discussion addresses claims under the Fair Housing Act or specifically links constructive eviction to discrimination or retaliation toward disabled tenants.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. Arredondo v. Village on the Lake, LTD

Court of Appeals of Texas, Houston (14th Dist.). • December 14, 2023 • 681 S.W.3d 853 • 2023 WL 8631465

"...A "constructive eviction" occurs when the tenant leaves the leased premises due to conduct by the landlord which materially interferes with the tenant's beneficial use of the premises...."

2. Ryan v. Ramsey

United States District Court, S.D. Texas. • August 01, 1996 • 936 F.Supp. 417 • 1996 WL 465325

"...Violation of Fair Housing Act (FHA) provision prohibiting housing discrimination against disabled can be established by showing either discriminatory intent or treatment or significant discriminatory effect. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

"...(2). Consideration of Ryan's Handicap by Defendants. In the message Ramsey left on Ryan's answering machine, Ramsey states that she had experienced problems with the "disability thing" before, with regard to a previous tenant named "Johnny." It can be reasonably inferred from Ramsey's comments in the message that "Johnny's" problem was not an innate inability to pay the rent-instead, it can be inferred that the difficulty Ramsey experienced with "Johnny" was his wasting his benefits on "drugs and booze and everything else" and otherwise spending the available rent money. Although Ramsey concedes on the message that "that's not the kind of thing that you're likely to do," there is nevertheless a reasonable inference that Ramsey, having had a bad experience with a tenant who received disability benefits, did not wish to rent an apartment to another such tenant. A landlord's past negative experiences with members of a protected class, however, is not a legitimate justification for subsequent discrimination against other members of the protected class. See *Baumgardner v. Secretary, HUD on Behalf of Holley*, 960 F.2d 572, 574-75, 579 (6th Cir.1992). In *Baumgardner*, the Sixth Circuit affirmed a holding that a landlord who refused to rent to males because such persons were "messy and unclean" was guilty of discrimination even though the landlord had in fact experienced such difficulties in the past. *Id.* Applying the *Baumgardner* approach in cases of discrimination against the handicapped is consistent with the FHA's purpose to ensure that such persons are treated as individuals, not on the basis of stereotypes, when being considered for housing. See *Support Ministries for Persons with AIDS, Inc.*, 808 F.Supp. at 130...."

3. Women's Elevated Sober Living L.L.C. v. City of Plano, Texas

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...III. Under the FHA, it is unlawful "(t)o discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of . a person residing in or intending to reside in that dwelling." 42 U.S.C. S 3604(f)(1)(B). Discrimination includes "a refusal to make reasonable accommodations in rules (or) policies . when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." *Id.* S 3604(f)(3)(B). In a failure-to-accommodate claim, a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. See *Providence Behav. Health v. Grant Rd. Pub. Util. Dist.*, 902 F.3d 448, 459 (5th Cir. 2018). Importantly, the plaintiff bears the burden of proving a violation of the FHA. See *Elderhaven, Inc. v. City of Lubbock*, 98 F.3d 175, 178 (5th Cir. 1996)...."

4. § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish,

or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination)(1) To discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of-- (C) any person associated with that buyer or renter...."

5. **Chavez v. Aber**

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...Landlord's alleged actions in responding to tenant's request for accommodation in order to keep emotional support animal, a mixed-breed pit bull, for tenant's mentally disabled son in rented duplex, despite duplex's "no pets" policy, by engaging in hostility and harassment against tenant, including filing suits for eviction, calling animal control services, and refusing to offer tenant renewed lease on terms similar to non-disabled tenants in complex, were adverse, as supported tenant's prima facie case of retaliation under Fair Housing Act (FHA). Fair Housing Act, S 804(f)(3)(B), 42 U.S.C.A. S 3604(f)(3)(B)...."

"...c. Plaintiffs sufficiently pleaded a claim for retaliation under 42 U.S.C. S 3617. Here, Plaintiffs have alleged that they engaged in a protected activity by requesting an accommodation to the Duplex's "no pets" policy in order to keep an emotional support animal for M.C.'s disabilities. See Compl. 6; Donovan, 2015 WL 1241020, at *4. Plaintiffs have further asserted that Defendants responded to the accommodation request by engaging in "relentless hostility and harassment" against Plaintiffs, including filing suits for eviction, calling the Animal Control Services, and refusing to offer Plaintiffs a renewed lease on terms similar to non-disabled tenants in the complex. Threats and intimidation after plaintiff filed a complaint of housing discrimination is "direct evidence of retaliation in violation of the FHA." Crest Asset Mgmt., 85 F.Supp.2d at 733. Accordingly, Plaintiffs have sufficiently alleged an "adverse action" under S 3617. See id...."

"...Tenant's allegations that landlord retaliated after tenant in good faith exercised or attempted to exercise right or remedy granted to tenant "by the FHA," and that tenant presented her first request for accommodation to rented duplex's "no pets" policy in order to keep emotional support animal, a mixed-breed pit bull, for tenant's mentally disabled son, after which landlord filed first eviction complaint later the same month, sufficiently stated retaliation claim under Texas Property Code. Fair Housing Act, S 804(f)(3)(B), 42 U.S.C.A. S 3604(f)(3)(B); V.T.C.A., Property Code S 92.331(a)(1)...."

"...Tenant's allegations that after landlord verbally asked her to get rid of her mentally disabled son's service animal, a mixed-breed pit bull, tenant explained that animal was necessary because son was person with disabilities, that tenant sent landlord support letters, which further explained son's medical needs, shortly after landlord delivered first notice to vacate, and that it was not until after landlord verbally denied reasonable accommodation request that he filed first eviction complaint sufficiently pled that landlord had knowledge of son's disabilities, as supported tenant's claim under the reasonable accommodation provision of Fair Housing Act (FHA). Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

6. § 3617. Interference, coercion, or intimidation

42 USCA § 3617

"...It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other

person in the exercise or enjoyment of, any right granted or protected by section 3603, 3604, 3605, or 3606 of this title...."

7. Heinert v. Wichita Falls Housing Authority

Court of Appeals of Texas, Amarillo. • July 29, 2014 • 441 S.W.3d 810 • 2014 WL 3747129

"...Evidence established that tenant was terminated from his tenancy due to his violation of the terms of his lease by engaging in criminal activity that threatened the housing authority staff, not due to his mental illness, and thus housing authority was not required to grant tenant a reasonable accommodation due to his disability; tenant failed to establish the precise nature, severity, limitations, or breadth of his disability, and thus there was no link between the disability and the conduct that formed housing authority's decision to evict tenant. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...Reasonable Accommodation. Further, no reasonable accommodation need be made for a tenant who was properly evicted for making threats if those threats were not causally linked to his disability. As a general rule, federal laws requiring reasonable accommodations for the disabled "all require a causal nexus between the plaintiff's disability and the underlying basis for terminating the tenancy before the duty to consider a reasonable accommodation arises." Sinisgallo, 865 F.Supp.2d at 339-40; see Huberty v. Washington Cnty. Hous. & Redev. Auth., 374 F.Supp.2d 768, 773 (D.Minn.2005) (order); Boston Hous. Auth. v. Bridgewaters, 452 Mass. 833, 898 N.E.2d 848, 859-60 (2009). With that, to determine whether a plaintiff has shown that a reasonable accommodation "may be necessary" to afford that plaintiff an equal opportunity to use and enjoy a dwelling under the FHA, courts must determine whether "there is a causal link between the disability for which the accommodation is requested and the misconduct that is the subject of the eviction or other challenged action." Sinisgallo, 865 F.Supp.2d at 339-40 (quoting Bridgewaters, 898 N.E.2d at 859-60); see Brooker v. Altoona Hous. Auth., No. 3:11-CV-95, 2013 WL 2896814, at *14-15 n. 15, 2013 U.S. Dist. LEXIS 82228, at *52 n. 15 (W.D.Pa. June 12, 2013) (citing Sinisgallo for proposition that tenant must show that her behavior forming the basis of the eviction was attributable to her disability); Evans v. UDR, Inc., 644 F.Supp.2d 675, 690 (E.D.N.C.2009) ("In order for an accommodation to be deemed 'necessary,' there must be some causal connection between the proposed accommodation and the equal opportunity to be afforded the person with a disability.")...."

"...No reasonable accommodation need be made for a tenant who was properly evicted for making threats if those threats were not causally linked to his disability. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...Reasonable Accommodation: Application of Appropriate Standard. Teruel did identify Heinert as having a social skills "gap" which can cause him to act inappropriately close to others when others do not wish to be so close to him. So, while it may well be that Heinert's often awkward, and, at times, alarming interaction with his neighbors could arguably be connected to Heinert's disability in understanding boundaries in social settings, nothing in Teruel's testimony would suggest that Heinert's threats of violence against the staff were causally related to his disability or disabilities. The record fails to establish the causal link between the conduct forming the factual basis of the eviction and Heinert's disability, meaning that his tenancy was not terminated as a result of his disability but, instead, was terminated as a consequence of his failure to abide by the rules imposed by the lease:...."

8. Woods-Drake v. Lundy

United States Court of Appeals, Fifth Circuit. • February 18, 1982 • 667 F.2d 1198

"...In tenants' action under Fair Housing Act and section 1982, alleging that their landlord evicted them because they had entertained black guests in their rented apartment, plaintiffs were not required to show that racial animus was sole motivation for eviction, but only that race was a significant factor; accordingly, it was irrelevant that landlord may also have been angry at tenants for violating his parking rules, or that landlord disagreed with tenants' guests' political views. Civil Rights Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq.; 42 U.S.C.A. S 1982...."

"...SUMMARY. Reversal and remand of this case is so clearly compelled by the facts and the law that we engage in only an exiguous, rather than an exegetic, analysis. The district court found that, "defendant threatened to evict plaintiffs if they continued to receive black persons as guests in their house." It is well established that such conduct-discrimination against whites because of their association with blacks-is proscribed by 42 U.S.C. s 1982 and by the Fair Housing Act. Moreover, under both the Fair Housing Act and under Section 1982, plaintiffs need not show that racial animus was the sole motivation for eviction; only that race was a significant factor. Accordingly, it is irrelevant that defendant Lundy may also have been angry at plaintiffs for violating his parking rules, or that Lundy disagreed with plaintiffs' guests' political views, as the district court "inferred". So long as the race of plaintiffs' guests was a significant factor in defendant's decision to evict plaintiffs, the eviction was in violation of Section 1982 and of the Fair Housing Act. Given the district court's finding that defendant evicted plaintiffs because plaintiffs had black persons as guests, the conclusion of liability under Section 1982 and under the Fair Housing Act is inescapable. Finally, when plaintiffs were forced to leave their apartment, and to locate and move into other quarters, a finding that plaintiffs sustained no damages as the result of their unlawful eviction is clearly erroneous...."

"...Landlord's conduct of threatening to evict tenants if they continued to have black guests was a violation of section 1982 and was prohibited by express terms of Fair Housing Act. Civil Rights Act of 1968, S 804(b), 42 U.S.C.A. S 3604(b); 42 U.S.C.A. S 1982...."

"...Given ample evidence to support finding that landlord evicted tenants because they had black guests in their apartment, landlord was liable under both section 1982 and Fair Housing Act. Civil Rights Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq.; 42 U.S.C.A. S 1982...."

9. AHF Community Development, LLC v. City of Dallas

United States District Court, N.D. Texas, Dallas Division. • June 11, 2009 • 633 F.Supp.2d 287 • 2009 WL 1650485

"...B. Although in Cox the Fifth Circuit did not address S 3617, its conclusion that the FHA is concerned with discrimination in the acquisition of housing (with the possible exception of post-acquisition discrimination through constructive eviction) is relevant to an analysis of the scope of S 3617. Specifically, the reasoning of Cox suggests that S 3617 is concerned with retaliatory acts that affect the availability, rather than the mere enjoyment, of property. This conclusion is consistent with the language of S 3617, which ties protection against retaliation to a person's exercise or enjoyment of any right granted or protected by S 3604 or one of the other enumerated sections. Based on this explicit statutory link, the Seventh Circuit in Halprin, a decision that the Cox court generally found persuasive, questioned whether S 3617 should apply where a violation of S 3604 had not itself been shown. Further, in two recent unpublished decisions, the Fifth Circuit has suggested that it, too, sees a connection between the scope of SS 3604 and 3617. In Reule v. Sherwood Valley I Council of Co-owners, Inc., 235 Fed.Appx. 227, 227-28 (5th Cir.2007) (per curiam), the court cited Cox and Halprin to conclude that the plaintiff's claims under both S 3604 and S 3617 must "fail because they go to the habitability of her condominium and not the availability of housing," id. Similarly, in McZeal v. Ocwen Financial Corp., 252 F.3d 1355 (5th Cir.2001) (per curiam) (unpublished table decision), the Fifth Circuit stated: "(b)ecause his S 3605 claim fails, (plaintiff's) claim under S 3617 must also fail," id. at *2. Accordingly, the court holds that S 3617 applies only to conduct that

implicates the availability of housing rather than merely habitability. In other words, to be actionable under S 3617, the defendant's conduct must make housing unavailable, not merely less habitable...."

"...1. Here, it is only with reference to the March 13, 2006 operation that AHF offers any proof of inappropriate behavior by the SAFE Team or DPD officers toward Bent Creek residents. But even assuming that certain SAFE Team members or DPD officers treated residents in an overbearing, obnoxious, and/or disrespectful manner during this operation, a reasonable jury could not find that this conduct amounts to a constructive eviction. This one-time incident is significantly less detrimental to the quality of life than is the chronic denial of essential services, such as sewer or basic utilities. And even if the court assumes *arguendo* that a second occurrence of such police conduct would have been sufficient to support a constructive eviction claim-on the theory that minority residents would see it as the beginning of a pattern of harassment and begin vacating the premises-only one such "raid" occurred at Bent Creek. If incidents that merely made a residence less desirable could amount to a constructive eviction, the distinction between habitability and availability of housing would be materially blurred if not erased entirely. AHF has identified no case, and the court has found none, that suggests that an incident such as the March 13, 2006 operation would itself support a claim for making unavailable or denying housing under S 3604(a). Accordingly, even assuming that constructive eviction is actionable under S 3604(a), a reasonable jury could not find that any actions by the City rose to this level...."

10. **Fidelity Mut. Life Ins. Co. v. Robert P. Kaminsky, M.D., P.A.**

Court of Appeals of Texas, Houston (14th Dist.). • February 23, 1989 • 768 S.W.2d 818 • 1989 WL 13973

"...OPINION. Both action and lack of action can constitute "conduct" by the landlord which amounts to a constructive eviction. E.g., *Downtown Realty Inc.*, 748 S.W.2d at 311; 49 Tex.Jur.3d Landlord & Tenant S 288. In *Steinberg v. Medical Equip. Rental Serv., Inc.*, 505 S.W.2d 692 (Tex.Civ.App.-Dallas 1974, no writ) accordingly, the court upheld a jury's determination that the landlord's failure to act amounted to a constructive eviction and breach of the covenant of quiet enjoyment. 505 S.W.2d at 697. Like Dr. Kaminsky, the tenant in *Steinberg* abandoned the leased premises and refused to pay additional rent after repeatedly complaining to the landlord. The *Steinberg* tenant complained that *Steinberg* placed trash bins near the entrance to the business and allowed trucks to park and block customer's access to the tenant's medical equipment rental business. The tenant's repeated complaints to *Steinberg* yielded only a request "to be patient." *Id.* Fidelity responded to Dr. Kaminsky's complaints in a similar manner: although it acknowledged his problems with the protestors, Fidelity, like *Steinberg*, effectively did nothing to prevent the problems...."

"...Both action and lack of action can constitute "conduct by the landlord" which amounts to constructive eviction. ..."

11. **Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.**

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...II. Application. Plaintiffs bring four claims under the FHA: (1) discrimination in the sale or rental, or otherwise making unavailable, a dwelling because of a disability, in violation of 42 U.S.C. S 3604(f)(1); (2) discrimination in the terms, conditions, or privileges of a dwelling, or in the provision of services or facilities in connection with that dwelling, in violation of S 3604(f)(2); refusal to make a reasonable accommodation in violation of S 3604(f)(3) (B); and (4) intimidation, threat, or interference with the exercise or enjoyment of a right protected by the FHA, in violation of S 3617. Plaintiffs claim that these actions were retaliatory, intentional, and "taken in wanton disregard"

of Plaintiffs' rights. Docket no. 8 at 12. Defendant moves to dismiss all four claims under Rule 12(b)(6), arguing Plaintiffs have failed to state a claim. The Court addresses each of Plaintiffs' claims in turn...."

12. **Texas v. Crest Asset Management, Inc.**

United States District Court, S.D. Texas, Houston Division. • February 29, 2000 • 85 F.Supp.2d 722 • 2000 WL 249254

"...Minority tenant's direct evidence of apartment complex owner's and managers' alleged threats and intimidation in wake of tenant's complaints of housing discrimination created genuine issue of material fact as to whether defendants had engaged in retaliation in violation of Fair Housing Act (FHA) and Texas Fair Housing Act (TFHA), precluding summary judgment in tenant's action. Civil Rights Act of 1968, S 818, as amended, 42 U.S.C.A. S 3617; V.T.C.A., Property Code S 301.171...."

13. **Swanston v. City of Plano, Texas**

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...II. Overview of Applicable Law. "Congress enacted the FHA 'to eradicate discriminatory practices within a sector of our Nation's economy' and to clearly pronounce 'a national commitment to end the unnecessary exclusion of persons with handicaps from the American mainstream.'" Swanston v. City of Plano, Tex., No. 4:19-CV-412, 2020 WL 7080817, at *2 (E.D. Tex. Dec. 3, 2020) (first quoting Tex. Dep't of Hous. & Cmty. Affs. v. Inclusive Comms. Project, Inc. ("TDHCA"), 576 U.S. 519, 539, 135 S.Ct. 2507, 192 L.Ed.2d 514 (2015); and then quoting Groome Res., Ltd., L.L.C. v. Parish of Jefferson, 234 F.3d 192, 201 (5th Cir. 2000)). Under the FHA, it is unlawful to sell, rent, or otherwise make unavailable or deny "a dwelling to any buyer or renter because of a handicap" of "that buyer or renter"; "a person residing in or intending to reside in that dwelling after it is so sold, rented, or made available"; or "any person associated with that buyer or renter." 42 U.S.C. S 3604(f)(1)(A)-(C). For purposes of this subsection, discrimination includes "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." Id. S 3604(f)(3). "(P)recedent recogniz(es) the FHA's 'broad and inclusive' compass"-accordingly, courts afford the provisions of the statutory scheme "a 'generous construction.'" City of Edmonds v. Oxford House, Inc., 514 U.S. 725, 731, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995) (quoting Trafficante v. Metro. Life Ins. Co., 409 U.S. 205, 209, 212, 93 S.Ct. 364, 34 L.Ed.2d 415 (1972))...."

14. **§ 92.331. Retaliation by Landlord**

TX PROPERTY § 92.331

"...(a) A landlord may not retaliate against a tenant by taking an action described by Subsection (b) because the tenant: (1) in good faith exercises or attempts to exercise against a landlord a right or remedy granted to the tenant by lease, municipal ordinance, or federal or state statute; (2) gives a landlord a notice to repair or exercise a remedy under this chapter; (3) complains to a governmental entity responsible for enforcing building or housing codes, a public utility, or a civic or nonprofit agency, and the tenant: (A) claims a building or housing code violation or utility problem; and (B) believes in good faith that the complaint is valid and that the violation or

problem occurred; or (4) establishes, attempts to establish, or participates in a tenant organization. (b) A landlord may not, within six months after the date of the tenant's action under Subsection (a), retaliate against..."

15. § 3602. Definitions

42 USCA § 3602

"...As used in this subchapter-- (a) "Secretary" means the Secretary of Housing and Urban Development. (b) "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. (c) "Family" includes a single individual. (d) "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries. (e) "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (f) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title." "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title...."

Additional Research on This Topic

16. § 1982. Property rights of citizens

42 USCA § 1982

"...All citizens of the United States shall have the same right, in every State and Territory, as is enjoyed by white citizens thereof to inherit, purchase, lease, sell, hold, and convey real and personal property...."

Follow-up question

3. Do courts treat exposure to hazardous housing conditions that disproportionately harm a disabled tenant as a violation of 42 U.S.C. § 3604(f)?

Courts have recognized that exposure to hazardous housing conditions that disproportionately harm disabled tenants can constitute a violation of [42 U.S.C.A. § 3604](#) (f) under the Fair Housing Act (FHA). Such conditions may also be considered discriminatory constructive eviction if they render continued residence objectively unreasonable or deny equal opportunity to use and enjoy a dwelling.

Discrimination Under [42 U.S.C.A. § 3604](#) (f)

[Section 3604\(f\)](#) of the FHA prohibits discrimination in the sale or rental of housing or in the provision of services or facilities in connection with housing based on disability. Discrimination includes actions that make housing unavailable or deny equal opportunity to use and enjoy a dwelling due to a disability. Specifically, discrimination encompasses the refusal to make reasonable accommodations in rules, policies, practices, or services when such accommodations are necessary to afford disabled individuals equal opportunity to use and enjoy a dwelling ([42 U.S.C.A. § 3604](#)) [1].

In [Ryan v. Ramsey](#), the court emphasized that a violation of § 3604(f) can be established by showing discriminatory intent, treatment, or significant discriminatory effect. The FHA aims to ensure that disabled individuals are treated as individuals rather than based on stereotypes when being considered for housing ([Ryan v. Ramsey](#), 936 F.Supp. 417 (1996)) [2]. Similarly, in [Chavez v. Aber](#), the court held that a landlord's refusal to make reasonable accommodations for a disabled tenant, such as allowing a service animal, could constitute discrimination under § [3604\(f\)\(3\)\(B\)](#) ([Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [3].

Constructive Eviction and Hazardous Housing Conditions

Constructive eviction under the FHA may arise when housing conditions or actions by a landlord render continued residence objectively unreasonable, effectively making the dwelling unavailable. Courts have recognized that the denial of essential services, such as sewer hookups or basic utilities, can amount to constructive eviction. For example, in [AHF Community Development, LLC v. City of Dallas](#), the court noted that chronic denial of essential services could support a constructive eviction claim under § 3604(a). However, isolated incidents or conditions that merely make a residence less desirable do not typically rise to the level of constructive eviction ([AHF Community Development, LLC v. City of Dallas](#), 633 F.Supp.2d 287 (2009)) [4].

In [Petty v. Portofino Council of Coowners, Inc.](#), the court found that a condominium association's refusal to accommodate a disabled tenant's service animal affected the availability of housing and constituted disability discrimination under § 3604(f). This case illustrates how actions that interfere with a disabled tenant's ability to use and enjoy their dwelling can be actionable under the FHA ([Petty v. Portofino Council of Coowners, Inc.](#), 702 F.Supp.2d 721 (2010)) [5].

Disparate Impact and Discriminatory Practices

The FHA also recognizes disparate impact claims, where a practice disproportionately affects disabled individuals without a legitimate justification. In [Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.](#), the Supreme Court affirmed that disparate impact claims are cognizable under the FHA, emphasizing the statute's broad and inclusive purpose to eradicate discriminatory practices in housing ([Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.](#), 576 U.S. 519 (2015)) [6]. Disparate impact liability applies to practices that predictably result in discriminatory effects, including those that perpetuate segregation or disproportionately harm disabled tenants ([Robinson v. City of Friendswood](#), 890 F.Supp. 616 (1995)) [7].

Application to Hazardous Housing Conditions

Hazardous housing conditions that disproportionately harm disabled tenants may violate § 3604(f) if they result in discriminatory treatment or effect, or if they deny equal opportunity to use and enjoy a dwelling. Courts have held that landlords and housing providers must make reasonable accommodations to address such conditions when necessary for disabled tenants. Failure to do so could constitute discrimination under the FHA. Additionally, if hazardous conditions render continued residence objectively unreasonable, they may support a claim for discriminatory constructive eviction under § 3604(a) ([42 U.S.C.A. § 3604](#)) [1].

In summary, courts treat exposure to hazardous housing conditions that disproportionately harm disabled tenants as potential violations of [42 U.S.C.A. § 3604](#) (f). Such conditions may also constitute discriminatory constructive eviction if they effectively deny housing or make continued residence unreasonable.

Commentary about this question

APPENDIX D. Attorney's Forms

Housing Discrimination Law and Litigation • Housing Discrimination Law and Litigation Appendix D

This legal material addresses claims under the Fair Housing Act (42 U.S.C. § 3604(f)) concerning disability discrimination in rental housing, including discriminatory eviction practices and hostile housing conditions due to disability. It provides analysis of how courts interpret unlawful discrimination in housing terms, conditions, and privileges based on physical disability or perceived disability. The examples include landlord harassment, improper rent increases, eviction threats, and retaliatory actions tied to disability status, reflecting core protections under the FHA against differential treatment and coercive conduct. The document discusses constructive eviction implications through discriminatory acts affecting tenants' right to quiet enjoyment. While primarily based on cases outside Texas, the legal principles under federal FHA provisions apply nationwide, including Texas, and illustrate that hazardous or discriminatory housing conditions tied to a tenant's disability can violate 42 U.S.C. § 3604(f) and constitute discriminatory treatment that may support claims akin to constructive eviction under the Act. The material also highlights injunctive relief and remedies for disabled tenants facing such discrimination.

Cause of Action for Discrimination in Sale or Rental of Housing in Violation of Federal Fair Housing Act (42 U.S.C.A. §§ 3601 et seq.) on Basis of Religion or National Origin

Causes of Action Second Series • 62 Causes of Action 2d 471 (Originally published in 2014)

This source provides an extensive analysis of the Federal Fair Housing Act (FHA), particularly 42 U.S.C. § 3604(f), which prohibits discrimination based on disability in housing. It addresses how courts

interpret discriminatory practices that deny or make unavailable dwellings because of disability, including conceptions extending to conditions akin to constructive eviction. The material discusses that post-acquisition discrimination denying equal terms or conditions in housing is actionable under § 3604(b), which may apply where services or conditions are imposed discriminatorily. It also explains disparate treatment and disparate impact theories relevant to disability discrimination claims, as well as remedies and procedural elements under the FHA. Further, the source refers to cases analyzing discriminatory housing conditions, selective enforcement of rules, and the obligations for reasonable accommodations. The text is applicable in Texas federal and state contexts due to its citation of federal statute and case law interpreting FHA provisions concerning disability-related housing discrimination and constructive eviction claims.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination..."

2. **Ryan v. Ramsey**

United States District Court, S.D. Texas. • August 01, 1996 • 936 F.Supp. 417 • 1996 WL 465325

"...Violation of Fair Housing Act (FHA) provision prohibiting housing discrimination against disabled can be established by showing either discriminatory intent or treatment or significant discriminatory effect. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

"...(2). Consideration of Ryan's Handicap by Defendants. In the message Ramsey left on Ryan's answering machine, Ramsey states that she had experienced problems with the "disability thing" before, with regard to a previous tenant named "Johnny." It can be reasonably inferred from Ramsey's comments in the message that "Johnny's" problem was not an innate inability to pay the rent-instead, it can be inferred that the difficulty Ramsey experienced with "Johnny" was his wasting his benefits on "drugs and booze and everything else" and otherwise spending the available rent money. Although Ramsey concedes on the message that "that's not the kind of thing that you're likely to do," there is nevertheless a reasonable inference that Ramsey, having had a bad experience with a tenant who received disability benefits, did not wish to rent an apartment to another such tenant. A landlord's past negative experiences with members of a protected class, however, is not a legitimate

justification for subsequent discrimination against other members of the protected class. See *Baumgardner v. Secretary, HUD on Behalf of Holley*, 960 F.2d 572, 574-75, 579 (6th Cir.1992). In *Baumgardner*, the Sixth Circuit affirmed a holding that a landlord who refused to rent to males because such persons were "messy and unclean" was guilty of discrimination even though the landlord had in fact experienced such difficulties in the past. *Id.* Applying the *Baumgardner* approach in cases of discrimination against the handicapped is consistent with the FHA's purpose to ensure that such persons are treated as individuals, not on the basis of stereotypes, when being considered for housing. See *Support Ministries for Persons with AIDS, Inc.*, 808 F.Supp. at 130...."

"...(2). Consideration of Ryan's Handicap by Defendants. Because a fact issue exists as to whether Ryan's disability was a determinative factor in the defendants' refusal to rent to him, the second of the Rhodes requirements has been met. Accordingly, the defendants are not entitled to summary judgment on the discriminatory intent theory of discrimination under the FHA...."

3. **Chavez v. Aber**

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...Tenant's allegations that after landlord verbally asked her to get rid of her mentally disabled son's service animal, a mixed-breed pit bull, tenant explained that animal was necessary because son was person with disabilities, that tenant sent landlord support letters, which further explained son's medical needs, shortly after landlord delivered first notice to vacate, and that it was not until after landlord verbally denied reasonable accommodation request that he filed first eviction complaint sufficiently pled that landlord had knowledge of son's disabilities, as supported tenant's claim under the reasonable accommodation provision of Fair Housing Act (FHA). Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...Tenant whose monthly rent increased as result of landlord's refusal to accommodate her son's mental health disabilities by allowing him to keep mixed-breed pit bull as emotional support animal in rented duplex, and who allegedly suffered harassment by landlord which ultimately forced her to find new rental home, suffered injury in fact such that she had standing to bring individual discrimination and retaliation claims against landlord under Fair Housing Act (FHA). Fair Housing Act, SS 802(i)(1, 2), 813(a)(1)(A), 42 U.S.C.A. SS 3602(i)(1, 2), 3613(a)(1)(A)...."

"...b. Plaintiffs have sufficiently pleaded a plausible claim of housing discrimination under 42 U.S.C. SS 3604(f)(1), 3604(f)(2), and 3604(f)(3)(B). Section 3604 of the FHA prohibits discrimination concerning the sale, rental, and financing of housing based on disability. See 42 U.S.C. S 3604; *City of Edmonds v. Oxford House, Inc.*, 514 U.S. 725, 729, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995). Under S 3604(f)(1) it is unlawful to "discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of (A) that buyer or renter; (B) a person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or (C) any person associated with that buyer or renter." 42 U.S.C. S 3604(f)(1)(A); see also *City of Edmonds*, 514 U.S. at 729, 115 S.Ct. 1776. The FHA further prohibits discrimination "against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a handicap of (A) that person; or (B) a person residing or intending to reside in that dwelling after it is so sold, rented or made available; or (C) any person associated with that person." 42 U.S.C. S 3604(f)(2); see also *Groome Res. Ltd., L.L.C. v. Parish of Jefferson*, 234 F.3d 192, 200 n. 9 (5th Cir.2000). "For the purposes of (S 3604), discrimination includes . a refusal to make reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford such person

equal opportunity to use and enjoy a dwelling." 42 U.S.C. S 3604(f)(3)(B); see also *City of Edmonds*, 514 U.S. at 729, 115 S.Ct. 1776...."

4. **AHF Community Development, LLC v. City of Dallas**

United States District Court, N.D. Texas, Dallas Division. • June 11, 2009 • 633 F.Supp.2d 287 • 2009 WL 1650485

"...1. Here, it is only with reference to the March 13, 2006 operation that AHF offers any proof of inappropriate behavior by the SAFE Team or DPD officers toward Bent Creek residents. But even assuming that certain SAFE Team members or DPD officers treated residents in an overbearing, obnoxious, and/or disrespectful manner during this operation, a reasonable jury could not find that this conduct amounts to a constructive eviction. This one-time incident is significantly less detrimental to the quality of life than is the chronic denial of essential services, such as sewer or basic utilities. And even if the court assumes *arguendo* that a second occurrence of such police conduct would have been sufficient to support a constructive eviction claim-on the theory that minority residents would see it as the beginning of a pattern of harassment and begin vacating the premises-only one such "raid" occurred at Bent Creek. If incidents that merely made a residence less desirable could amount to a constructive eviction, the distinction between habitability and availability of housing would be materially blurred if not erased entirely. AHF has identified no case, and the court has found none, that suggests that an incident such as the March 13, 2006 operation would itself support a claim for making unavailable or denying housing under S 3604(a). Accordingly, even assuming that constructive eviction is actionable under S 3604(a), a reasonable jury could not find that any actions by the City rose to this level...."

"...1. Nonetheless, even assuming that constructive eviction is a viable theory, AHF has not adduced evidence of actions by the City that would rise to the level of rendering continued residence at Bent Creek objectively unreasonable. *Clifton Terrace Associates, Ltd. v. United Technologies Corp.*, 929 F.2d 714 (D.C.Cir.1991), a case that the Fifth Circuit cited in *Cox*, illustrates the type of conduct necessary to amount to constructive eviction. In *Clifton Terrace* the D.C. Circuit noted that "the denial of certain essential services relating to a dwelling, such as mortgage financing, sewer hookups, zoning approval, or basic utilities, might result in the denial of housing." *Id.* at 719-20. As a further example, a municipality's decision to shut off the water supply for a significant time to a predominantly African-American neighborhood would amount to constructive eviction...."

5. **Petty v. Portofino Council of Coowners, Inc.**

United States District Court, S.D. Texas, Corpus Christi Division. • March 12, 2010 • 702 F.Supp.2d 721 • 2010 WL 918740

"...1. Plaintiffs Allege Disability Discrimination That Affects the Availability of Housing. Under S 3604(f), a defendant is liable if it makes property unavailable by refusing to "make reasonable accommodations . when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." See 42 U.S.C. S 3604(f)(3)(B). Plaintiffs allege that after they obtained a service dog, Defendant fined them and sent them a letter stating that "Christopher cannot take the service animal out of the building to the restroom." (D.E. 14, p. 4.) By steering the service animal away from the common areas outside the building, Defendant has made the condominium complex unavailable and has failed to provide reasonable accommodations. *Cox*, 430 F.3d at 742-43; *Evans*, 657 F.2d at 663; *Mitchell*, 580 F.2d at 790-91. Therefore, Plaintiffs state a claim of disability discrimination affecting the availability of housing...."

6. **Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.**

Supreme Court of the United States • June 25, 2015 • 576 U.S. 519 • 135 S.Ct. 2507

"...The underlying dispute in this case concerns where housing for low-income persons should be constructed in Dallas, Texas—that is, whether the housing should be built in the inner city or in the suburbs. This dispute comes to the Court on a disparate-impact theory of liability. In contrast to a disparate-treatment case, where a "plaintiff must establish that the defendant had a discriminatory intent or motive," a plaintiff bringing a disparate-impact claim challenges practices that have a "disproportionately adverse effect on minorities" and are otherwise unjustified by a legitimate rationale. *Ricci v. DeStefano*, 557 U.S. 557, 577, 129 S.Ct. 2658, 174 L.Ed.2d 490 (2009) (internal quotation marks omitted). The question presented for the Court's determination is whether disparate-impact claims are cognizable under the Fair Housing Act (or FHA), 82 Stat. 81, as amended, 42 U.S.C. § 3601 et seq. I .A Before turning to the question presented, it is necessary to..."

7. **Robinson v. City of Friendswood**

United States District Court, S.D. Texas, Houston Division. • February 16, 1995 • 890 F.Supp. 616 • 1995 WL 374653

"...Provision of Fair Housing Act (FHA) making it unlawful to discriminate in sale or rental, or otherwise to make unavailable or deny, dwelling to buyer or renter because of handicap applies not only to sellers or landlords, but to sophisticated practices such as enforcing zoning or land use laws that have effect of denying housing to disabled. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

"...MEMORANDUM AND ORDER GRANTING SUMMARY JUDGMENT. Although this Court concurs with the City that the FHAA addresses discrimination against the handicapped in obtaining housing, even if it applies to individuals already in residence in the community, Plaintiff has failed to show that the City violated its provisions. Plaintiff has not attempted to show intentional discrimination by direct evidence. To establish a prima facie case through indirect means, a plaintiff must prove that the challenged practice "actually or predictably" results in disparate impact discrimination. *Oxford House, Inc. v. Town of Babylon*, 819 F.Supp. 1179, 1182-83 (E.D.N.Y.1993). Plaintiff has failed to make such a showing. Nor do the stipulated facts here support Plaintiff's allegation that the City unreasonably refused to make accommodations necessary for Plaintiff to live in his house. The disputed zoning ordinance, requiring a twenty-five-foot setback from the front property line of all structures for residential use in the City, is neutral on its face and applies generally to all residences of the City. Nor was it applied to Plaintiff in a discriminatory manner. That Plaintiff had the same disabilities and lived in the same house for years before he constructed the carport indicates that ordinance did not prevent him from obtaining housing of his choice nor from living in the community of his choice. Rather Plaintiff chose to convert an existing, attached, two-car garage into quarters for other purposes, even though it would have met his asserted needs without violation of the law. Moreover that deliberate action undermines his argument that his handicap necessitates a variance or some other accommodation by the City and demonstrates that his insistence on keeping the illegal carport is arbitrary and uncompromising. Accordingly the Court concludes that summary judgment under the FHAA should be granted to the City...."

8. **Heinert v. Wichita Falls Housing Authority**

Court of Appeals of Texas, Amarillo. • July 29, 2014 • 441 S.W.3d 810 • 2014 WL 3747129

"...Evidence established that tenant was terminated from his tenancy due to his violation of the terms of his lease by engaging in criminal activity that threatened the housing authority staff, not due to his mental illness, and thus housing authority was not required to grant tenant a reasonable accommodation due to his disability; tenant failed to establish the precise nature, severity, limitations, or breadth of his disability, and thus there was no link between the disability and the conduct that formed housing authority's decision to evict tenant. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...Reasonable Accommodation. Further, no reasonable accommodation need be made for a tenant who was properly evicted for making threats if those threats were not causally linked to his disability. As a general rule, federal laws requiring reasonable accommodations for the disabled "all require a causal nexus between the plaintiff's disability and the underlying basis for terminating the tenancy before the duty to consider a reasonable accommodation arises." Sinisgallo, 865 F.Supp.2d at 339-40; see *Huberty v. Washington Cnty. Hous. & Redev. Auth.*, 374 F.Supp.2d 768, 773 (D.Minn.2005) (order); *Boston Hous. Auth. v. Bridgewaters*, 452 Mass. 833, 898 N.E.2d 848, 859-60 (2009). With that, to determine whether a plaintiff has shown that a reasonable accommodation "may be necessary" to afford that plaintiff an equal opportunity to use and enjoy a dwelling under the FHA, courts must determine whether "there is a causal link between the disability for which the accommodation is requested and the misconduct that is the subject of the eviction or other challenged action." Sinisgallo, 865 F.Supp.2d at 339-40 (quoting *Bridgewaters*, 898 N.E.2d at 859-60); see *Brooker v. Altoona Hous. Auth.*, No. 3:11-CV-95, 2013 WL 2896814, at *14-15 n. 15, 2013 U.S. Dist. LEXIS 82228, at *52 n. 15 (W.D.Pa. June 12, 2013) (citing Sinisgallo for proposition that tenant must show that her behavior forming the basis of the eviction was attributable to her disability); *Evans v. UDR, Inc.*, 644 F.Supp.2d 675, 690 (E.D.N.C.2009) ("In order for an accommodation to be deemed 'necessary,' there must be some causal connection between the proposed accommodation and the equal opportunity to be afforded the person with a disability.")...."

"...Reasonable Accommodation: Application of Appropriate Standard. (T)he policy of evicting tenants who violate provisions of their lease does not prevent disabled tenants from using the premises because of their disability. Rather, these tenants are prevented from using the premises because they violated their lease. There is thus no link between this policy and (the tenant's) disability...."

"...As a general rule, federal laws requiring reasonable accommodations for the disabled all require a causal nexus between the plaintiff's disability and the underlying basis for terminating the tenancy before the duty to consider a reasonable accommodation arises. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

9. Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...a. Intentional Discrimination: S 3604(f)(1). Plaintiffs claim that Defendant engaged in such intentional discrimination through its "new fines and enforcement scheme" as well as its refusal to grant a "reasonable accommodation" during the pandemic. Docket no. 12 at 15. Plaintiffs argue that "Defendant's actions will render the Residence unavailable both to its current Residents" and to any future residents. *Id.* In its motion to dismiss this claim, Defendant argues that S 3604(f)(1) covers conduct that directly makes a dwelling unavailable, not conduct which may, as a side effect, make it more difficult for the handicapped person to remain in the dwelling. See docket no. 11-1 at 5. Plaintiffs respond that "by imposing an accelerating fine structure, Defendant has specifically targeted (Plaintiffs) and has placed them in a position in which they will have no choice but to close the Residence." Docket no. 12 at 17. In other words, Plaintiffs argue that Defendant "will cause the sober living residence to close, thus directly rendering the housing unavailable." *Id.*...."

10. Women's Elevated Sober Living L.L.C. v. City of Plano, Texas

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...III. Under the FHA, it is unlawful "(t)o discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of . a person residing in or intending to reside in that dwelling." 42 U.S.C. S 3604(f)(1)(B). Discrimination includes "a refusal to make reasonable accommodations in rules (or) policies . when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." Id. S 3604(f)(3)(B). In a failure-to-accommodate claim, a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. See *Providence Behav. Health v. Grant Rd. Pub. Util. Dist.*, 902 F.3d 448, 459 (5th Cir. 2018). Importantly, the plaintiff bears the burden of proving a violation of the FHA. See *Elderhaven, Inc. v. City of Lubbock*, 98 F.3d 175, 178 (5th Cir. 1996)...."

11. Swanston v. City of Plano, Texas

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...II. Overview of Applicable Law. "Congress enacted the FHA 'to eradicate discriminatory practices within a sector of our Nation's economy' and to clearly pronounce 'a national commitment to end the unnecessary exclusion of persons with handicaps from the American mainstream." *Swanston v. City of Plano, Tex.*, No. 4:19-CV-412, 2020 WL 7080817, at *2 (E.D. Tex. Dec. 3, 2020) (first quoting *Tex. Dep't of Hous. & Cmty. Affs. v. Inclusive Comms. Project, Inc. ("TDHCA")*, 576 U.S. 519, 539, 135 S.Ct. 2507, 192 L.Ed.2d 514 (2015); and then quoting *Groome Res., Ltd., L.L.C. v. Parish of Jefferson*, 234 F.3d 192, 201 (5th Cir. 2000)). Under the FHA, it is unlawful to sell, rent, or otherwise make unavailable or deny "a dwelling to any buyer or renter because of a handicap" of "that buyer or renter"; "a person residing in or intending to reside in that dwelling after it is so sold, rented, or made available"; or "any person associated with that buyer or renter." 42 U.S.C. S 3604(f)(1)(A)-(C). For purposes of this subsection, discrimination includes "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." Id. S 3604(f)(3). "(P)recedent recogniz(es) the FHA's 'broad and inclusive' compass"-accordingly, courts afford the provisions of the statutory scheme "a 'generous construction.'" *City of Edmonds v. Oxford House, Inc.*, 514 U.S. 725, 731, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995) (quoting *Trafficante v. Metro. Life Ins. Co.*, 409 U.S. 205, 209, 212, 93 S.Ct. 364, 34 L.Ed.2d 415 (1972))...."

12. Arredondo v. Village on the Lake, LTD

Court of Appeals of Texas, Houston (14th Dist.). • December 14, 2023 • 681 S.W.3d 853 • 2023 WL 8631465

"...Background: Tenant, who was mother of minor children who lived with her, brought action against landlord and landlord's general partner, alleging familial status discrimination, breach of contract, constructive eviction, and breach of warranty of quiet enjoyment after tenant moved out of apartment two months after moving in due to receipt of multiple noise and other complaints. Landlord counterclaimed for unpaid rent and fees. The 151st District Court, Harris County, granted landlord's motion for traditional and no-evidence summary judgment. Tenant appealed. Holdings: The Court of Appeals, Poissant, J., held that: tenant waived any argument on appeal that landlord and landlord's general partner engaged in disparate treatment discrimination based on familial status under Fair Housing Act (FHA) or Texas Fair Housing Act (TFHA); there was no evidence that provision

in rental agreement prohibiting certain conduct had disparate impact on families, as required to support claim of disparate impact discrimination; landlord and general partner were not liable for breach of lease, in absence of any identification of a provision in the lease that landlord allegedly violated; landlord providing warnings and notifications about noise complaints to tenant did not substantially interfere with tenant's use of property, as required element of claims for constructive eviction and breach of warranty of quiet enjoyment; and landlord was entitled to recover for unpaid rent, cleaning fees, unreturned keys and remotes, and other fees from tenant pursuant to parties' lease agreement. Affirmed...."

13. **Inclusive Communities Project, Incorporated v. Lincoln Property Company**

United States Court of Appeals, Fifth Circuit. • April 09, 2019 • 920 F.3d 890 • 2019 WL 1529692

"...3. FHA Disparate Impact Liability: Application. To adopt the dissent's position would effectively mandate a landlord's participation in the voucher program any time the racial makeup of multi-family rental complex does not match the demographics of a nearby metropolitan area. That result, however, would be contrary to the cautionary standards that the Supreme Court has declared to be necessary both in evaluating a prima facie case and in ordering any remedial action:..."

14. **§ 1437f. Low-income housing assistance**

42 USCA § 1437f

"...(o) Voucher program (8) Inspection of units by PHAs (G) Enforcement of housing quality standards If a public housing agency determines that any damage to a dwelling unit that results in a failure of the dwelling unit to comply with housing quality standards under subparagraph (B), other than any damage resulting from ordinary use, was caused by the tenant, any member of the tenant's household, or any guest or other person under the tenant's control, the agency may waive the applicability of this subparagraph, except that this clause shall not exonerate a tenant from any liability otherwise existing under applicable law for damages to the premises caused by such tenant...."

15. **§ 12182. Prohibition of discrimination by public accommodations**

42 USCA § 12182

"...(a) General rule No individual shall be discriminated against on the basis of disability in the full and equal enjoyment of the goods, services, facilities, privileges, advantages, or accommodations of any place of public accommodation by any person who owns, leases (or leases to), or operates a place of public accommodation. (b) Construction (1) General prohibition (A) Activities (i) Denial of participation It shall be discriminatory to subject an individual or class of individuals on the basis of a disability or disabilities of such individual or class, directly, or through contractual, licensing, or other arrangements, to a denial of the opportunity of the individual or class to participate in or benefit from the goods, services, facilities, privileges, advantages, or accommodations of an entity. (ii) Participation in unequal benefit It shall be discriminatory to afford an individual or class of individuals, on the basis of a disability or disabilities of such..."

"...No individual shall be discriminated against on the basis of disability in the full and equal enjoyment of the goods, services, facilities, privileges, advantages, or accommodations of any place of public accommodation by any person who owns, leases (or leases to), or operates a place of public accommodation...."

Additional Research on This Topic

16. § 3602. Definitions

42 USCA § 3602

"...As used in this subchapter-- (a) "Secretary" means the Secretary of Housing and Urban Development. (b) "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. (c) "Family" includes a single individual. (d) "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries. (e) "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (f) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of thisf) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title...."

17. § 3613. Enforcement by private persons

42 USCA § 3613

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

"...Upon application by a person alleging a discriminatory housing practice or a person against whom such a practice is alleged, the court may--..."

18. § 3617. Interference, coercion, or intimidation

42 USCA § 3617

Follow-up question

4. Does the failure to relocate a disabled tenant from unsafe or uninhabitable housing constitute a failure to accommodate under the Fair Housing Act?

The failure to relocate a disabled tenant from unsafe or uninhabitable housing may constitute a failure to accommodate under the Fair Housing Act (FHA) if certain conditions are met. Additionally, such conduct could potentially amount to discrimination or constructive eviction under [42 U.S.C.A. § 3604](#) (f).

Failure to Accommodate Under the Fair Housing Act

Under the FHA, a failure-to-accommodate claim requires the plaintiff to demonstrate four elements: (1) the affected tenant has a disability or handicap; (2) the tenant requested an accommodation; (3) the requested accommodation was reasonable; and (4) the accommodation was necessary to afford the tenant an equal opportunity to use and enjoy the dwelling ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), 86 F.4th 1108 (2023)) [1]. Specifically, [42 U.S.C.A. § 3604](#) (f)(3)(B) defines discrimination to include a refusal to make reasonable accommodations in rules, policies, practices, or services when such accommodations are necessary to afford a disabled person equal opportunity to use and enjoy a dwelling ([42 U.S.C.A. § 3604](#)) [2].

If a disabled tenant requests relocation from unsafe or uninhabitable housing as an accommodation, and the landlord or housing provider refuses to grant this request, the refusal could be deemed a failure to accommodate if the relocation is both reasonable and necessary to ensure the tenant's equal enjoyment of the dwelling. The reasonableness and necessity of the accommodation would depend on the specific circumstances, including the nature of the disability and the conditions of the housing.

Discrimination and Constructive Eviction Under [42 U.S.C.A. § 3604](#) (f)

[42 U.S.C.A. § 3604](#) (f) prohibits discrimination in the sale or rental of housing, including making a dwelling unavailable or denying services or facilities because of a tenant's handicap ([42 U.S.C.A. § 3604](#)) [2]. Discrimination under this section includes actions that effectively deny a disabled tenant the ability to live in safe and habitable conditions. If a landlord's failure to relocate a disabled tenant from unsafe housing results in the tenant being unable to safely reside in the dwelling, this could be considered discriminatory conduct under the FHA.

Constructive eviction occurs when a landlord's actions or omissions render a dwelling uninhabitable, forcing the tenant to vacate. If the failure to relocate a disabled tenant from unsafe housing effectively forces the tenant to leave, this could amount to constructive eviction, which may also violate the FHA's prohibition against discriminatory housing practices ([42 U.S.C.A. § 3604](#)) [2].

Legal Standards and Application

The legal standards for determining whether a failure to relocate constitutes a failure to accommodate or discrimination under the FHA depend on whether the requested relocation is reasonable and necessary to afford the tenant equal opportunity to use and enjoy the dwelling. Courts have emphasized the importance of these elements in FHA claims ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), 86

[F.4th 1108 \(2023\)](#)) [1]. However, the specific facts of each case, including the nature of the disability and the housing conditions, will determine the outcome.

If additional information about the tenant's disability, the requested accommodation, and the housing conditions is available, it would help clarify whether the conduct in question violates the FHA.

Commentary about this question

APPENDIX 4T. Sample Oppositions to Motions to Dismiss

Housing Discrimination Practice Manual • 3 Housing Discrim. Pr. Man. Appendix 4T

The analysis addresses liability under 42 U.S.C. § 3604(f) for owners and landlords of multifamily housing who fail to provide accessible units or amenities as required by the Fair Housing Amendments Act. It clarifies that discrimination encompasses both intentional and unintentional conduct that denies disabled tenants access to housing, including failure to maintain or provide accessible conditions. The text interprets subsections (f)(1) and (f)(2) as prohibiting making units unavailable or discriminating in terms or conditions of rental based on disability. Failure to correct architectural barriers or to accommodate disabled tenants may constitute discrimination. The legislative history and judicial precedents emphasize a broad construction of these provisions, imposing ongoing obligations on owners to maintain accessibility, regardless of whether they participated in the original design or construction. The material also discusses discrimination claims distinct from design violations, relevant to disabled tenants denied safe and habitable housing under federal law applicable in Texas federal jurisdiction.

§ 11D:8. Three special provisions—Accommodations

Housing Discrimination Law and Litigation • Housing Discrimination Law and Litigation § 11D:8

The analysis addresses reasonable accommodation requirements under the Fair Housing Act, particularly § 3604(f)(3)(B), which mandates housing providers to make necessary accommodations for disabled individuals to ensure equal opportunity to use and enjoy housing. It outlines the elements of a reasonable accommodation claim, including the tenant's disability, landlord's knowledge, necessity of the accommodation, and refusal to provide it. Failure to accommodate, such as refusing to transfer a tenant to suitable housing, can constitute discrimination under § 3604(f). The document also explains that reasonable accommodations must be practical, not imposing undue burden or fundamental alteration. It distinguishes between intentional discrimination and failure to accommodate as separate bases for liability. Case examples highlight various accommodation scenarios involving disabled tenants. This framework is directly relevant to claims involving failure to relocate disabled tenants from unsafe or uninhabitable housing and establishes the legal standards under federal law applicable in Texas.

Cause of Action for Handicapped Discrimination in Housing in Violation of the Federal Fair Housing Act [42 U.S.C.A. §§ 3601 et seq.] and Related Federal Statutes

Causes of Action Second Series • 22 Causes of Action 2d 1 (Originally published in 2003)

The provided legal material addresses claims under the Fair Housing Act (FHA), specifically 42 U.S.C. § 3604(f), relating to reasonable accommodations and discrimination against disabled individuals in housing. It discusses the elements required to prove failure to accommodate, including the necessity of the accommodation to afford the disabled person equal opportunity to use and enjoy the dwelling. The law prohibits refusal to make reasonable accommodations, such as modifying policies or providing different services, when needed due to a handicap. Several cases illustrate what constitutes reasonable accommodation and when denial of accommodation amounts to discrimination under the FHA. The

material also touches upon the distinction between reasonable accommodations and fundamental alterations or undue burdens on housing providers. It includes examples relevant to tenant-landlord relationships and regulatory authorities, which are pertinent to interpreting claims of discrimination, constructive eviction, and failure to relocate disabled tenants from unsafe housing under the FHA in federal and Texas state contexts.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. **Women's Elevated Sober Living L.L.C. v. City of Plano, Texas**

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...In a failure-to-accommodate claim under the Fair Housing Act (FHA), a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. 42 U.S.C.A. S 3604(f)(3)(B)...."

2. **§ 3604. Discrimination in the sale or rental of housing and other prohibited practices**

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination..."

3. **§ 12132. Discrimination**

42 USCA § 12132

"...Subject to the provisions of this subchapter, no qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity...."

4. **§ 3602. Definitions**

42 USCA § 3602

"...As used in this subchapter-- (a) "Secretary" means the Secretary of Housing and Urban Development. (b) "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. (c) "Family" includes a single individual. (d) "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries. (e) "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (f) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this..."

5. Parada v. Sandhill Shores Property Owners Association, Inc.

United States District Court, S.D. Texas, Galveston Division. • May 25, 2022 • 604 F.Supp.3d 567 • 2022 WL 1693977

"...To prevail on a Fair Housing Act (FHA) reasonable-accommodation claim, a plaintiff must demonstrate: (1) that she had a handicap; (2) she requested an accommodation and it was denied; (3) the requested accommodation is reasonable; and (4) the requested accommodation in rules, policies, practices, or services of the handicap is necessary to afford the plaintiff an equal opportunity-i.e., equal to a person without a handicap-to use and enjoy the dwelling. 42 U.S.C.A. S 3604(f)(3)(B)...."

Follow-up question

5. Do state courts have any discretion to deny relief after finding a violation of the Fair Housing Act or ADA?

State courts have discretion to determine the appropriate relief after finding a violation of the Fair Housing Act (FHA) or the Americans with Disabilities Act (ADA). However, this discretion is not unlimited and must align with the statutory framework and the principles of equity established under these laws.

Discretion in Granting Relief Under the Fair Housing Act

Under the FHA, courts are authorized to grant relief as they deem appropriate when a discriminatory housing practice has occurred or is about to occur. Specifically, [42 U.S.C.A. § 3613](#) (c)(1) provides that courts may award actual and punitive damages and may grant permanent or temporary injunctions, restraining orders, or other orders, including affirmative actions to remedy the discriminatory practice ([42 U.S.C.A. § 3613](#)) [1]. This statutory language explicitly grants courts the authority to tailor relief to the specific circumstances of the case, ensuring that remedies address the harm caused by the violation and prevent future discrimination ([U.S. v. Jamestown Center-In-The-Grove Apartments, 557 F.2d 1079 \(1977\)](#)) [2].

The Fifth Circuit has emphasized that relief under the FHA should be determined on a case-by-case basis, tailored to the needs of the particular situation. Relief should aim to ensure that no future violations occur and to remove any lingering effects of past discrimination ([U.S. v. Jamestown Center-In-The-Grove Apartments, 557 F.2d 1079 \(1977\)](#)) [2]. For example, in [U.S. v. Jamestown Center-In-The-Grove Apartments](#) , the court noted that relief for FHA violations should be sufficient to address the discriminatory practices and their consequences, and that the district court had misconceived the legal standards applicable to remedies in housing discrimination cases ([U.S. v. Jamestown Center-In-The-Grove Apartments, 557 F.2d 1079 \(1977\)](#)) [2].

Discretion in Granting Relief Under the Americans With Disabilities Act

The ADA similarly provides courts with discretion to grant equitable relief, including injunctive relief, when a violation has occurred. Under 42 U.S.C. § 12133, the remedies, procedures, and rights available under the Rehabilitation Act ([29 U.S.C.A. § 794a](#)) are incorporated into the ADA. These remedies include equitable relief, such as injunctive relief, and allow courts to consider factors like the reasonableness of the cost of necessary accommodations and the availability of alternatives when fashioning remedies ([29 U.S.C.A. § 794a](#)) [3], ([42 U.S.C.A. § 12133](#)) [4].

In [Steward by next friend Green v. Young](#) , the court highlighted that both legal and equitable remedies are available to redress violations of Title II of the ADA and Section 504 of the Rehabilitation Act. Remedies may include injunctive relief, monetary damages, and other appropriate measures to address the discrimination and ensure compliance with federal law ([Steward by next friend Green v. Young, 787 F.Supp.3d 476 \(2025\)](#)) [5]. Similarly, [42 U.S.C.A. § 12188](#) (a)(2) specifies that injunctive relief may include orders to alter facilities, provide auxiliary aids or services, or modify policies to ensure accessibility and prevent discrimination ([42 U.S.C.A. § 12188](#)) [6].

Limitations on Discretion

While state courts have discretion in granting relief under the FHA and ADA, this discretion is constrained by the statutory mandates of these laws. Relief must be appropriate to the circumstances and consistent with the goals of the statutes, which aim to eliminate discrimination and ensure equal access to housing and public accommodations. For example, in [U.S. v. Jamestown Center-In-The-Grove Apartments](#), the court criticized the district court for granting insufficient relief and emphasized the need for remedies to address both future violations and the lingering effects of past discrimination ([U.S. v. Jamestown Center-In-The-Grove Apartments](#), 557 F.2d 1079 (1977)) [2].

Additionally, courts must adhere to the principle that reliance on state laws or policies cannot excuse non-compliance with federal anti-discrimination laws. As noted in [La Unión del Pueblo Entero v. Abbott](#), the ADA requires public entities to make reasonable modifications to rules, policies, practices, or services to prevent disability discrimination, even if such modifications conflict with state statutory requirements ([La Unión del Pueblo Entero v. Abbott](#), 770 F.Supp.3d 974 (2025)) [7].

Impact of Negative Treatment on Discretion

It is important to note that the case [Swanston v. City of Plano, Texas](#), which discusses equitable remedies under the FHA and ADA, was vacated and remanded by the Fifth Circuit in [Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#) on November 20, 2023. This negative treatment may affect the precedential value of the Swanston decision and should be considered when relying on its analysis ([Swanston v. City of Plano, Texas](#), 557 F.Supp.3d 781 (2021)) [8].

In summary, state courts do have discretion to grant relief under the FHA and ADA, but this discretion must be exercised within the framework of the statutes and in accordance with equitable principles. Relief must be tailored to address the specific discriminatory practices and their effects, and courts must ensure compliance with federal anti-discrimination mandates.

Commentary about this question

APPENDIX 4T. Sample Oppositions to Motions to Dismiss

Housing Discrimination Practice Manual • 3 Housing Discrim. Pr. Man. Appendix 4T

This text outlines litigation involving claims under the Fair Housing Act (FHA), Americans with Disabilities Act (ADA), and Rehabilitation Act, focusing on violations related to accessibility and discrimination against disabled individuals in federally funded housing programs. It discusses courts' applications of statutory standards and procedural doctrines such as standing, pleading requirements, and venue, emphasizing plaintiffs' rights to seek injunctive and declaratory relief for ongoing discrimination. The material analyzes the federal courts' interpretations of the ADA and FHA, including organizational and associational standing, and addresses common defenses and motions to dismiss. It also touches upon the scope of federal remedies and courts' reluctance to dismiss claims improperly amid ongoing violations. Although it does not explicitly discuss discretionary denial of relief post-violation findings, it provides legal context on enforcement mechanisms and judicial approaches to relief under these civil rights statutes in federal litigation, relevant to Texas federal and state courts dealing with similar claims.

Cause of Action for Handicapped Discrimination in Housing in Violation of the Federal Fair Housing Act [42 U.S.C.A. §§ 3601 et seq.] and Related Federal Statutes

Causes of Action Second Series • 22 Causes of Action 2d 1 (Originally published in 2003)

This compilation of secondary source materials addresses violations and enforcement under the Fair Housing Act (FHA), Americans with Disabilities Act (ADA), and related federal statutes, including issues of discrimination based on disability and reasonable accommodation. It examines legal standards for proving discrimination, necessity and reasonableness of accommodations, and burdens on defendants. The sources discuss sovereign immunity constraints on state entities under the ADA and FHA, emphasizing that while states generally enjoy immunity from monetary damages claims, private injunctive relief against state officials remains available under doctrines such as *Ex parte Young*. The material also highlights that remedies and enforcement mechanisms vary, with limitations on suits against states but broader enforcement against municipal subdivisions. This framework applies to both federal and state courts in Texas, outlining the ability and limits courts have in granting or denying relief following findings of violations under these federal disability discrimination laws.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 3613. Enforcement by private persons

42 USCA § 3613

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

"...(c) Relief which may be granted (1) In a civil action under subsection (a), if the court finds that a discriminatory housing practice has occurred or is about to occur, the court may award to the plaintiff actual and punitive damages, and subject to subsection (d), may grant as relief, as the court deems appropriate, any permanent or temporary injunction, temporary restraining order, or other order (including an order enjoining the defendant from engaging in such practice or ordering such affirmative action as may be appropriate)...."

2. U.S. v. Jamestown Center-In-The-Grove Apartments

United States Court of Appeals, Fifth Circuit. • August 15, 1977 • 557 F.2d 1079

"...Appropriate relief for violations of the Fair Housing Act is to be determined on a case-by-case basis with relief tailored in each instance to the needs of the particular case. Civil Rights Act of 1968, SS 801 et seq., 813, 42 U.S.C.A. SS 3601 et seq., 3613...."

"...Relief for violations of Fair Housing Act should be aimed toward insuring that no future violations of the Act occur and removing any lingering effects of past discrimination. Civil Rights Act of 1968, SS 801 et seq., 813, 42 U.S.C.A. SS 3601 et seq., 3613...."

"...In the present case, we agree with the government that the relief granted was not sufficient. The district court appeared to misconceive the legal standards applicable to the remedy in housing discrimination cases. Noting racial identification on records, to insure compliance, is neither illegal nor improper. Announcements in advertising that there will be no discrimination serve to overcome the prior image of non-white denial of access. It misapprehends this purpose to view such announcements as inappropriate court-ordered invitations to the excluded class to move into a defendant's property. Finally, West Peachtree was not an anachronistic decision awarding excessive relief. While it set neither an inflexible ceiling nor floor, it was intended to, and did, set out useful guidelines for the courts of this circuit that would minimize federal intrusion and assure that defendants could retain maximum control of their business operations consistent with the national policy of equal housing opportunity, 437 F.2d at 228-29...."

"...Relief ordered for violations of Fair Housing Act by defendants found to have engaged in practice of discrimination against persons on basis of race in renting apartments, enjoining defendants from any future violations of the Act and ordering defendants to instruct employees of landlord in the provisions of the Act and of the court order and to open their rental records to governmental inspection for one year was not sufficient, and the affirmative relief provisions should be expanded to include various provisions of 1971 Court of Appeals Decision. Civil Rights Act of 1968, SS 801 et seq., 813, 42 U.S.C.A. SS 3601 et seq., 3613...."

3. § 794a. Remedies and attorney fees

29 USCA § 794a

"...(a)(1) The remedies, procedures, and rights set forth in section 717 of the Civil Rights Act of 1964 (42 U.S.C. 2000e-16), including the application of sections 706(f) through 706(k) (42 U.S.C. 2000e-5(f) through (k)) (and the application of section 706(e)(3) (42 U.S.C. 2000e-5(e)(3)) to claims of discrimination in compensation), shall be available, with respect to any complaint under section 791 of this title, to any employee or applicant for employment aggrieved by the final disposition of such complaint, or by the failure to take final action on such complaint. In fashioning an equitable or affirmative action remedy under such section, a court may take into account the reasonableness of the cost of any necessary work place accommodation, and the availability of alternatives therefor or other appropriate relief in order to achieve an equitable and appropriate remedy. (2) The remedies, procedures, and rights set forth in title VI of the Civil..."

"...(2) The remedies, procedures, and rights set forth in title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d et seq.) (and in subsection (e)(3) of section 706 of such Act (42 U.S.C. 2000e-5), applied to claims of discrimination in compensation) shall be available to any person aggrieved by any act or failure to act by any recipient of Federal assistance or Federal provider of such assistance under section 794 of this title...."

4. § 12133. Enforcement

42 USCA § 12133

"...The remedies, procedures, and rights set forth in section 794a of Title 29 shall be the remedies, procedures, and rights this subchapter provides to any person alleging discrimination on the basis of disability in violation of section 12132 of this title...."

5. Steward by next friend Green v. Young

United States District Court, W.D. Texas, San Antonio Division. • June 17, 2025 • 787 F.Supp.3d 476 • 2025 WL 1836138

"...A. Integration mandate. 0023. For violations of Title II, Congress incorporated the same enforcement measures and legal or equitable remedies available under S 505 of the Rehabilitation Act. 42 U.S.C. S 12133 ("The remedies, procedures, and rights set forth in section 794a of Title 29 shall be the remedies, procedures, and rights this subchapter provides to any person alleging discrimination on the basis of disability in violation of section 12132 of this title"); 28 C.F.R. S 35.103 ("this part (which implements Title II of the ADA) shall not be construed to apply a lesser standard than the standards applied under title V of the Rehabilitation Act . or the regulations issued by Federal agencies pursuant to that title"). For violations of S 504 of the Rehabilitation Act, S 505 of the Rehabilitation Act incorporates the remedies, rights, and procedures set forth in Title VI of the Civil Rights Act. See 29 U.S.C. S 794a(a)(2). Title VI, in turn, directs that compliance may be effected by the termination or denial of federal funds, or "by any other means authorized by law." 42 U.S.C. S 2000d-1. Thus, remedies both at law and in equity are available to redress violations of Title II and Section 504. See 42 U.S.C. S 2000d-7(a)(2); Olmstead, 527 U.S. at 590 n. 4, 119 S.Ct. 2176; see also 28 C.F.R. S 35.178 ("In any action against a State for a violation of the requirements of this Act, remedies (including remedies both at law and in equity) are available for such a violation to the same extent as such remedies are available for such a violation in an action against any public or private entity other than a State")...."

6. § 12188. Enforcement

42 USCA § 12188

"...(a) In general (1) Availability of remedies and procedures The remedies and procedures set forth in section 2000a-3(a) of this title are the remedies and procedures this subchapter provides to any person who is being subjected to discrimination on the basis of disability in violation of this subchapter or who has reasonable grounds for believing that such person is about to be subjected to discrimination in violation of section 12183 of this title. Nothing in this section shall require a person with a disability to engage in a futile gesture if such person has actual notice that a person or organization covered by this subchapter does not intend to comply with its provisions. (2) Injunctive relief In the case of violations of sections 12182(b)(2)(A)(iv) and section (FN1) 12183(a) of this title, injunctive relief shall include an order to alter facilities to make such facilities readily accessible to and usable by..."

"...(b) Enforcement by Attorney General In a civil action under paragraph (1)(B), the court-- (A) may grant any equitable relief that such court considers to be appropriate, including, to the extent required by this subchapter-- (iii) making facilities readily accessible to and usable by individuals with disabilities;..."

7. 🇲🇽 La Unión del Pueblo Entero v. Abbott

United States District Court, W.D. Texas, San Antonio Division. • March 14, 2025 • 770 F.Supp.3d 974 • 2025 WL 865262

"...Injunctive Relief is Reasonable and Defendants' Affirmative Defenses Fail. The State Defendants' position is also incorrect: "Requiring public entities to make changes to rules, policies, practices, or services is exactly what the ADA does." Lamone, 813 F.3d at 508-09 (citing Jones v. City of Monroe, 341 F.3d 474, 487 (6th Cir. 2003)); see also id. at 508 (rejecting argument "that the mere fact of a state statutory requirement insulates public entities from making otherwise reasonable modifications to prevent disability discrimination"); Barber v. Colo. Dep't of Revenue, 562 F.3d 1222, 1233 (10th Cir. 2009) (rejecting argument that modifying a state driving statute would be a "per se not reasonable" modification under the Rehabilitation Act, and holding that "(r)eliance on state statutes to excuse non-compliance with federal laws is simply unacceptable under the Supremacy Clause")...."

8. **Swanston v. City of Plano, Texas**

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...a. Equitable Relief. Beginning with equitable remedies, the FHA and ADA permit courts to grant appropriate equitable relief when a discriminatory practice has occurred. 42 U.S.C. S 3613(c)(1); id. S 12133; see 29 U.S.C. S 794a(a)(1). Plaintiffs request several forms of equitable remedies, but the Court focuses on their request for a permanent injunctive relief...."

9. **Gladstone Realtors v. Village of Bellwood**

Supreme Court of the United States • April 17, 1979 • 441 U.S. 91 • 99 S.Ct. 1601

"...Title VIII of the Civil Rights Act of 1968, 82 Stat. 81, as amended, 42 U.S.C. § 3601 et seq., commonly known as the Fair Housing Act of 1968 (Act), broadly prohibits discrimination in housing throughout the Nation. This case presents both statutory and constitutional questions concerning standing to sue under Title VIII. I Petitioners in this case are two real estate brokerage firms, Gladstone, Realtors (Gladstone), and Robert A. Hintze, Realtors (Hintze), and nine of their employees. Respondents are the village of Bellwood, a municipal corporation and suburb of Chicago, one Negro and four white residents of Bellwood, and one Negro resident of neighboring Maywood. During the fall of 1975, the individual respondents and other persons consulted petitioners, stating that they were interested in purchasing homes in the general suburban area of which Bellwood is a part. The individual respondents were not in fact seeking to purchase homes, but..."

10. **Deep East Texas Regional Mental Health and Mental Retardation Services v. Kinnear**

Court of Appeals of Texas, Beaumont. • June 09, 1994 • 877 S.W.2d 550 • 1994 WL 247423

"...Federal Fair Housing Act and Americans with Disabilities Act applied in action by neighboring property owner to enjoin construction of proposed community home for mentally impaired individuals. Civil Rights Act of 1968, S 801 et seq., as amended, 42 U.S.C.A. S 3601 et seq.; Americans with Disabilities Act of 1990, S 2 et seq., 42 U.S.C.A. S 12101 et seq...."

"...Part II-The Federal Statutes. We therefore sustain appellant's points of error twenty and twenty-one because we conclude that the Federal Fair Housing Act (42 U.S.C.A., Chapter 45 entitled "Fair Housing Act", S 3601 et seq.) and the Americans with Disabilities Act of 1990 (42 U.S.C.A., Chapter 126 entitled "Equal Opportunity for Individuals With Disabilities", S 12101, et seq.), have relevant application and germane paramountcy to the

issues raised by appellant in points of error twenty and twenty-one. Points twenty and twenty-one maintain that the trial court erred in concluding that the Federal Fair Housing Act and the Americans With Disabilities Act have no application in this case. We agree; the trial court erred...."

11. 🚩 **Groome Resources Ltd., L.L.C. v. Parish of Jefferson**

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...A violation of the Fair Housing Act (FHA) occurs when a disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings, and, thus, ripeness in the FHA context must be distinguished from ripeness cases involving unconstitutional takings or other zoning issues. U.S.C.A. Const.Amend. 5; Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...A. Purpose of the Fair Housing Amendments Act. In the scheme of the FHAA, the reasonable accommodations provision exists as a prohibition on discrimination against the disabled in the purchase, sale, or rental of housing. As set out in S 3604(f)(3)(B), the failure to reasonably accommodate the disabled in the context of housing is, itself, a defined act of discrimination. The question before this court is whether the activity of regulating discrimination against the disabled in the purchase, sale, or rental of housing can be shown to substantially affect interstate commerce, and therefore be upheld as a legitimate exercise of congressional authority...."

12. **Ryan v. Ramsey**

United States District Court, S.D. Texas. • August 01, 1996 • 936 F.Supp. 417 • 1996 WL 465325

"...Violation of Fair Housing Act (FHA) provision prohibiting housing discrimination against disabled can be established by showing either discriminatory intent or treatment or significant discriminatory effect. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

13. **Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.**

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...a. Intentional Discrimination: S 3604(f)(1). Plaintiffs claim that Defendant engaged in such intentional discrimination through its "new fines and enforcement scheme" as well as its refusal to grant a "reasonable accommodation" during the pandemic. Docket no. 12 at 15. Plaintiffs argue that "Defendant's actions will render the Residence unavailable both to its current Residents" and to any future residents. Id. In its motion to dismiss this claim, Defendant argues that S 3604(f)(1) covers conduct that directly makes a dwelling unavailable, not conduct which may, as a side effect, make it more difficult for the handicapped person to remain in the dwelling. See docket no. 11-1 at 5. Plaintiffs respond that "by imposing an accelerating fine structure, Defendant has specifically targeted (Plaintiffs) and has placed them in a position in which they will have no choice but to close the Residence." Docket no. 12 at 17. In other words, Plaintiffs argue that Defendant "will cause the sober living residence to close, thus directly rendering the housing unavailable." Id...."

14. 🚩 **Robinson v. City of Friendswood**

United States District Court, S.D. Texas, Houston Division. • February 16, 1995 • 890 F.Supp. 616 • 1995 WL 374653

"...Provision of Fair Housing Act (FHA) making it unlawful to discriminate in sale or rental, or otherwise to make unavailable or deny, dwelling to buyer or renter because of handicap applies not only to sellers or landlords, but to sophisticated practices such as enforcing zoning or land use laws that have effect of denying housing to disabled. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

15. U.S. v. Billingsley

United States Court of Appeals, Fifth Circuit. • August 16, 2010 • 615 F.3d 404 • 2010 WL 3212784

"...Term "relief," as used in the section of the Fair Housing Act (FHA) authorizing the Attorney General to commence a civil action on behalf of the aggrieved person, includes any type of relief a district court could grant, including a preliminary injunction, and not just final-judgment relief. Civil Rights Act of 1968, S 812, 42 U.S.C.A. S 3612...."

Additional Research on This Topic

16. 🚩 Chavez v. Aber

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...Injury may result when a housing provider unreasonably delays responding to a request for accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, and such delay may amount to a denial under Fair Housing Act (FHA). Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

17. 🚩 U.S. v. Forest Dale, Inc.

United States District Court, N.D. Texas, Dallas Division. • March 05, 1993 • 818 F.Supp. 954 • 1993 WL 127713

"...Acquittal of manager of public housing complex for elderly on criminal charge of violating city ordinance making housing discrimination on basis of handicap unlawful did not bar subsequent handicap discrimination claim against managers and owner under the Fair Housing Act on grounds of claim or issue preclusion, waiver, or election of remedies; neither United States nor applicant could have been parties to municipal court criminal action, and criminal action required proof beyond reasonable doubt...."

18. Parada v. Sandhill Shores Property Owners Association, Inc.

United States District Court, S.D. Texas, Galveston Division. • May 25, 2022 • 604 F.Supp.3d 567 • 2022 WL 1693977

"...C. FHA Claim. Under the FHA, it is unlawful "(t)o discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of . a person residing in or

intending to reside in that dwelling." 42 U.S.C. S 3604(f)(1)(B). Such prohibited discrimination includes "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford (handicapped) person(s) equal opportunity to use and enjoy a dwelling." *City of Edmonds v. Oxford House, Inc.*, 514 U.S. 725, 729, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995) (quoting 42 U.S.C. S 3604(f)(3)(B))...."

19. **Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.**

Supreme Court of the United States • June 25, 2015 • 576 U.S. 519 • 135 S.Ct. 2507

"...Unlawful practices under the Fair Housing Act (FHA) include zoning laws and other housing restrictions that function unfairly to exclude minorities from certain neighborhoods without any sufficient justification. Civil Rights Act of 1968, SS 804(a), 805(a), 42 U.S.C.A. SS 3604(a), 3605(a)...."

20. **Women's Elevated Sober Living L.L.C. v. City of Plano, Texas**

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...The accommodations requirements under both the Fair Housing Act (FHA) and the ADA are functionally identical. 42 U.S.C.A. S 3604(f)(3)(B); Americans with Disabilities Act of 1990 S 2 et seq., 42 U.S.C.A. S 12101 et seq...."

21. **§ 3604. Discrimination in the sale or rental of housing and other prohibited practices**

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination³) For purposes of this subsection, discrimination includes-- (C) in connection with the design and construction of covered multifamily dwellings for first occupancy after the date that is 30 months after September 13, 1988, a failure to design and construct those dwellings in such a manner that-- (ii) all the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by handicapped persons in wheelchairs; and..."

22. **§ 3601. Declaration of policy**

42 USCA § 3601

"...It is the policy of the United States to provide, within constitutional limitations, for fair housing throughout the United States...."

Follow-up question

6. What federal authorities discuss mandatory injunctive relief under the FHA when a landlord refuses to accommodate a disability?

Federal authorities addressing mandatory injunctive relief under the Fair Housing Act (FHA) in cases where a landlord fails to accommodate a disabled tenant, particularly involving relocation from unsafe or uninhabitable housing, focus on the FHA's prohibition against discrimination and its requirement for reasonable accommodations. The FHA mandates that landlords make reasonable accommodations in rules, policies, practices, or services when such accommodations are necessary to afford disabled individuals an equal opportunity to use and enjoy a dwelling. Courts have interpreted this provision broadly, emphasizing its inclusive scope and the necessity of balancing the interests of disabled tenants against the burdens placed on landlords.

Legal Framework for Reasonable Accommodations Under the FHA

The FHA explicitly prohibits discrimination in housing based on disability, including the refusal to make reasonable accommodations necessary for disabled individuals to enjoy equal access to housing. Section [3604\(f\)\(3\)\(B\)](#) defines discrimination to include "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling" ([42 U.S.C.A. § 3604](#)) [1]. Courts have consistently held that this provision requires landlords to modify policies or practices to accommodate disabled tenants, provided the requested accommodation is both reasonable and necessary ([Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.](#), 468 F.Supp.3d 800 (2020)) [2].

To prevail on a failure-to-accommodate claim under the FHA, a plaintiff must demonstrate: (1) the residents of the affected dwelling suffer from a disability; (2) they requested an accommodation from the defendant; (3) the requested accommodation was reasonable; and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), 86 F.4th 1108 (2023)) [3]. The plaintiff bears the burden of proving these elements ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), 86 F.4th 1108 (2023)) [3].

Injunctive Relief and Relocation in Cases of Unsafe Housing

The FHA provides for injunctive relief in cases where discriminatory housing practices are found. Courts may grant temporary or permanent injunctions, restraining orders, or other orders deemed appropriate, including affirmative actions to remedy the discrimination ([42 U.S.C.A. § 3613](#)) [4]. Injunctive relief may include mandatory actions such as relocation or modifications to housing policies to ensure accessibility and safety for disabled tenants ([42 U.S.C.A. § 12188](#)) [5].

In cases involving unsafe or uninhabitable housing, the necessity of the accommodation is critical. Courts have emphasized that the requested accommodation must directly address the effects of the tenant's disability and provide an equal opportunity to use and enjoy the dwelling ([Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [6]. For example, relocation from unsafe housing may be deemed necessary if the tenant's disability exacerbates the risks posed by the conditions of the dwelling.

Balancing Interests in Reasonable Accommodation Claims

The concept of reasonable accommodation under the FHA requires a balancing of interests. Courts consider the cost and burden to the landlord against the benefit to the disabled tenant ([Heinert v. Wichita Falls Housing Authority](#), 441 S.W.3d 810 (2014)) [7]. While the FHA is intended to provide broad protections for disabled individuals, it does not impose an obligation on landlords to accommodate every request without regard to feasibility or cost ([Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.](#), 468 F.Supp.3d 800 (2020)) [2]. Courts have noted that accommodations must be reasonable and not impose undue hardship on landlords ([Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.](#), 468 F.Supp.3d 800 (2020)) [2].

Constructive Denial and Timeliness of Accommodations

A landlord's failure to make a timely determination on a requested accommodation can constitute constructive denial under the FHA. Courts have held that an indeterminate delay in responding to accommodation requests has the same effect as an outright denial, particularly when the delay prevents the tenant from accessing safe and habitable housing ([Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [6].

Precedential Considerations

It is important to note that the case [Swanston v. City of Plano, Texas](#) was vacated and remanded by [Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#) in November 2023, which may affect its precedential value ([Swanston v. City of Plano, Texas](#), 557 F.Supp.3d 781 (2021)) [8]. However, the principles articulated in [Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#) reaffirm the necessity and reasonableness requirements for accommodations under the FHA ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), 86 F.4th 1108 (2023)) [3].

In summary, federal authorities under the FHA emphasize the importance of reasonable accommodations to ensure disabled tenants have equal access to housing. Mandatory injunctive relief, including relocation, may be appropriate when accommodations are necessary to address unsafe or uninhabitable housing conditions. Courts balance the interests of landlords and tenants while ensuring compliance with the FHA's broad and inclusive protections.

Commentary about this question

Cause of Action for Handicapped Discrimination in Housing in Violation of the Federal Fair Housing Act [42 U.S.C.A. §§ 3601 et seq.] and Related Federal Statutes

Causes of Action Second Series • 22 Causes of Action 2d 1 (Originally published in 2003)

The legal sources extensively discuss the scope of reasonable accommodation requirements under the Fair Housing Act (FHA), particularly 42 U.S.C. § 3604(f), regarding landlords' obligations toward disabled tenants. The materials emphasize the necessity for accommodations that enable equal opportunity to use and enjoy a dwelling, with courts considering factors such as the reasonableness and necessity of accommodations, landlord knowledge of disability, and the landlord's refusal to accommodate. Several federal cases and supplements address injunctions and remedies, including eviction stays or lease modifications, to avoid displacement of disabled tenants from unsafe or uninhabitable housing. The discussion includes the interplay with the Americans with Disabilities Act and the Rehabilitation Act, and outlines burdens relating to undue hardship and cost. Specific instances involving relocation requests due to disability-related needs are referenced, as well as judicial scrutiny of delays or denials in

accommodations impacting housing stability, reflecting federal authority and case law applicable in Texas federal jurisdiction.]

Cause of Action by Residential Landlord to Evict Tenants or Other Occupants

Causes of Action Second Series • 44 Causes of Action 2d 447 (Originally published in 2010)

This text discusses federal and state procedural protections and defenses available to tenants in eviction actions, particularly in subsidized housing governed by federal statutes, including the Fair Housing Act (FHA). It highlights tenants' rights to reasonable accommodations under the FHA, emphasizing federal authority requiring landlords to accommodate disabled tenants, including cases where eviction is threatened due to disability-related conduct. The analysis covers injunctions, due process protections, and burdens on landlords regarding accommodations. It references federal regulations and case law addressing the interplay of eviction and disability rights, notably the requirement for landlords to demonstrate that no reasonable accommodation would mitigate risks posed by a disabled tenant. Procedures for obtaining stays of eviction and injunctions preserving tenancy are also surveyed. Further, it touches on remedies when housing is unsafe or uninhabitable, including the possibility of tenant claims like breach of the warranty of habitability and counterclaims in eviction proceedings. This reflects legal frameworks applicable in Texas and federal jurisdictions regarding injunctive relief linked to disability accommodations under the FHA.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination³) For purposes of this subsection, discrimination includes-- (A) a refusal to permit, at the expense of the handicapped person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises except that, in the case of a rental, the landlord may where it is reasonable to do so condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted. (FN2)..."

2. Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...c. Failure to Accommodate: S 3604(f)(3)(B). 42 U.S.C. S 3604(f)(3)(B) prohibits the "refusal to make (a) reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford (handicapped persons) equal opportunity to use and enjoy a dwelling." 42 U.S.C. S 3604(f)(3)(B); see also *City of Edmonds v. Oxford House, Inc.*, 514 U.S. 725, 729, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995). Thus, if a person is handicapped under the FHA, he or she must show that the requested accommodation was reasonable and necessary, and that the defendant refused to make such an accommodation. See *Groome Res.*, 234 F.3d at 200 n.9 (5th Cir. 2000). Though the language of the FHA is "broad and inclusive" and should be given a generous construction, see *Trafficante*, 409 U.S. at 209, 93 S.Ct. 364, the FHA is not intended to provide "carte blanche" to the handicapped "to determine where and how they would live regardless of" the ordinances or restrictions at issue. *Bryant Woods Inn, Inc. v. Howard Cty. Md.*, 124 F.3d 597, 603 (4th Cir. 1997); see also *Bronk v. Ineichen*, 54 F.3d 425, 429 (7th Cir. 1995) ("The requirement of reasonable accommodation does not entail an obligation to do everything humanly possible to accommodate a disabled person; cost (to the defendant) and benefit (to the plaintiff) merit consideration as well.")...."

"...A defendant's constructive denial of a requested accommodation, for purposes of provision of Fair Housing Act (FHA) prohibiting refusal to make reasonable accommodation in rules, policies, practices, or services when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, may be found where the defendant fails to make a timely determination after meaningful review. 42 U.S.C.A. S 3604(f)(3)(B)...."

"...If a person is handicapped under the Fair Housing Act (FHA), he or she must show that requested accommodation was reasonable and necessary, and that the defendant refused to make such an accommodation, in order to prevail on claim alleging violation of FHA provision prohibiting refusal to make reasonable accommodations in rules, policies, practices, or services when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling. 42 U.S.C.A. S 3604(f)(3)(B)...."

"...A defendant's refusal of a requested accommodation, for purposes of provision of Fair Housing Act (FHA) prohibiting refusal to make reasonable accommodation in rules, policies, practices, or services when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, can be both actual or constructive. 42 U.S.C.A. S 3604(f)(3)(B)...."

3. Women's Elevated Sober Living L.L.C. v. City of Plano, Texas

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...III. Under the FHA, it is unlawful "(t)o discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of . a person residing in or intending to reside in that dwelling." 42 U.S.C. S 3604(f)(1)(B). Discrimination includes "a refusal to make reasonable accommodations in rules (or) policies . when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." *Id.* S 3604(f)(3)(B). In a failure-to-accommodate claim, a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. See *Providence Behav. Health v. Grant Rd. Pub. Util. Dist.*, 902 F.3d 448, 459 (5th Cir. 2018). Importantly, the plaintiff bears the burden of proving a violation of the FHA. See *Elderhaven, Inc. v. City of Lubbock*, 98 F.3d 175, 178 (5th Cir. 1996)...."

"...In a failure-to-accommodate claim under the Fair Housing Act (FHA), a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. 42 U.S.C.A. S 3604(f)(3)(B)...."

"...To be necessary, as could support failure-to-accommodate claim under Fair Housing Act (FHA), a requested accommodation from capacity restrictions must directly ameliorate the effect of the plaintiff's disabilities. 42 U.S.C.A. S 3604(f)(3)(B)...."

4. § 3613. Enforcement by private persons

42 USCA § 3613

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

"...(c) Relief which may be granted (1) In a civil action under subsection (a), if the court finds that a discriminatory housing practice has occurred or is about to occur, the court may award to the plaintiff actual and punitive damages, and subject to subsection (d), may grant as relief, as the court deems appropriate, any permanent or temporary injunction, temporary restraining order, or other order (including an order enjoining the defendant from engaging in such practice or ordering such affirmative action as may be appropriate)...."

5. § 12188. Enforcement

42 USCA § 12188

"...(a) In general (1) Availability of remedies and procedures The remedies and procedures set forth in section 2000a-3(a) of this title are the remedies and procedures this subchapter provides to any person who is being subjected to discrimination on the basis of disability in violation of this subchapter or who has reasonable grounds for believing that such person is about to be subjected to discrimination in violation of section 12183 of this title. Nothing in this section shall require a person with a disability to engage in a futile gesture if such person has actual notice that a person or organization covered by this subchapter does not intend to comply with its provisions. (2) Injunctive relief In the case of violations of sections 12182(b)(2)(A)(iv) and section (FN1) 12183(a) of this title, injunctive relief shall include an order to alter facilities to make such facilities readily accessible to and usable byIn the case of violations of sections 12182(b)(2)(A)(iv) and section (FN1) 12183(a) of this title, injunctive relief shall include an order to alter facilities to make such facilities readily accessible to and usable by individuals with disabilities to the extent required by this subchapter. Where appropriate, injunctive relief shall also include requiring the provision of an auxiliary aid or service, modification of a policy, or provision of alternative methods, to the extent required by this subchapter...."

6. Chavez v. Aber

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...Under Fair Housing Act (FHA), landlord's denial of a reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...To prevail on claim under the Fair Housing Act (FHA) that a defendant refused to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, a plaintiff must prove all of the following elements: (1) that the plaintiff or his associate is handicapped within the meaning of FHA, (2) that the defendant knew or should reasonably be expected to know of the disability, (3) that accommodation of the handicap may be necessary to afford the handicapped person an equal opportunity to use and enjoy the dwelling, (4) that the accommodation is reasonable, and (5) that defendant refused to make the requested accommodation. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...Fair Housing Act's (FHA) requirement of reasonable accommodation does not entail an obligation to do everything humanly possible to accommodate a disabled person; cost to the defendant and benefit to the plaintiff merit consideration as well. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

7. Heinert v. Wichita Falls Housing Authority

Court of Appeals of Texas, Amarillo. • July 29, 2014 • 441 S.W.3d 810 • 2014 WL 3747129

"...The concept of reasonable accommodation in a landlord and tenant dispute requires a balancing of the interest of and benefit to the disabled individual against the interest of and burden to the Public Housing Authority in making such accommodations. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...As a general rule, federal laws requiring reasonable accommodations for the disabled all require a causal nexus between the plaintiff's disability and the underlying basis for terminating the tenancy before the duty to consider a reasonable accommodation arises. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...The general concept of the reasonable accommodation doctrine is that, at times, a landlord may be required to make modifications to his policy, practices, or property for a disabled tenant, when doing so would give the tenant an equal opportunity to use and enjoy a dwelling. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...Reasonable Accommodation. Further, no reasonable accommodation need be made for a tenant who was properly evicted for making threats if those threats were not causally linked to his disability. As a general rule, federal laws requiring reasonable accommodations for the disabled "all require a causal nexus between the plaintiff's disability and the underlying basis for terminating the tenancy before the duty to consider a reasonable accommodation arises." Sinisgallo, 865 F.Supp.2d at 339-40; see Huberty v. Washington Cnty. Hous. & Redev. Auth., 374 F.Supp.2d 768, 773 (D.Minn.2005) (order); Boston Hous. Auth. v. Bridgewaters, 452 Mass. 833, 898 N.E.2d 848, 859-60 (2009). With that, to determine whether a plaintiff has shown that a reasonable accommodation "may be necessary" to afford that plaintiff an equal opportunity to use and enjoy a dwelling under the FHA, courts must determine whether "there is a causal link between the disability for which the accommodation is requested and the misconduct that is the subject of the eviction or other challenged action." Sinisgallo, 865 F.Supp.2d at 339-40 (quoting Bridgewaters, 898 N.E.2d at 859-60); see Brooker v. Altoona Hous. Auth., No. 3:11-CV-95, 2013 WL 2896814, at *14-15 n. 15, 2013 U.S. Dist. LEXIS 82228, at *52 n. 15 (W.D.Pa. June 12,

2013) (citing Sinisgallo for proposition that tenant must show that her behavior forming the basis of the eviction was attributable to her disability); *Evans v. UDR, Inc.*, 644 F.Supp.2d 675, 690 (E.D.N.C.2009) ("In order for an accommodation to be deemed 'necessary,' there must be some causal connection between the proposed accommodation and the equal opportunity to be afforded the person with a disability.")...."

8. **Swanston v. City of Plano, Texas**

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...II. Overview of Applicable Law. "Congress enacted the FHA 'to eradicate discriminatory practices within a sector of our Nation's economy' and to clearly pronounce 'a national commitment to end the unnecessary exclusion of persons with handicaps from the American mainstream." *Swanston v. City of Plano, Tex.*, No. 4:19-CV-412, 2020 WL 7080817, at *2 (E.D. Tex. Dec. 3, 2020) (first quoting *Tex. Dep't of Hous. & Cmty. Affs. v. Inclusive Comms. Project, Inc. ("TDHCA")*, 576 U.S. 519, 539, 135 S.Ct. 2507, 192 L.Ed.2d 514 (2015); and then quoting *Groome Res., Ltd., L.L.C. v. Parish of Jefferson*, 234 F.3d 192, 201 (5th Cir. 2000)). Under the FHA, it is unlawful to sell, rent, or otherwise make unavailable or deny "a dwelling to any buyer or renter because of a handicap" of "that buyer or renter"; "a person residing in or intending to reside in that dwelling after it is so sold, rented, or made available"; or "any person associated with that buyer or renter." 42 U.S.C. S 3604(f)(1)(A)-(C). For purposes of this subsection, discrimination includes "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." *Id.* S 3604(f)(3). "(P)recedent recogniz(es) the FHA's 'broad and inclusive' compass"-accordingly, courts afford the provisions of the statutory scheme "a 'generous construction.'" *City of Edmonds v. Oxford House, Inc.*, 514 U.S. 725, 731, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995) (quoting *Trafficante v. Metro. Life Ins. Co.*, 409 U.S. 205, 209, 212, 93 S.Ct. 364, 34 L.Ed.2d 415 (1972))...."

"...Claim under Fair Housing Act (FHA) or Title II of ADA for failure to make reasonable accommodation arises when plaintiffs are not granted reasonable accommodation that is necessary to allow them to have usage and enjoyment in facility equivalent to individuals who are not disabled. Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132; Civil Rights Act of 1968, S 802, 42 U.S.C.A. S 3602(f)...."

"...Background: Sober living home, its owner, and home resident brought action alleging that city's denial of its reasonable accommodation request violated Americans with Disabilities Act (ADA) and Fair Housing Act (FHA). Bench trial was held. Holdings: The District Court, Amos L. Mazzant, J., held that: home's residents were "disabled," within meaning of FHA and ADA; plaintiffs failed to establish disparate treatment claim; requested accommodation was not necessary on economic grounds; requested accommodation was therapeutically necessary; and requested accommodation was reasonable. Ordered accordingly...."

9. **Groome Resources Ltd., L.L.C. v. Parish of Jefferson**

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...A. Purpose of the Fair Housing Amendments Act. In the scheme of the FHAA, the reasonable accommodations provision exists as a prohibition on discrimination against the disabled in the purchase, sale, or rental of housing. As set out in S 3604(f)(3)(B), the failure to reasonably accommodate the disabled in the context of housing is, itself, a defined act of discrimination. The question before this court is whether the activity of regulating discrimination against the disabled in the purchase, sale, or rental of housing can be shown to substantially affect interstate commerce, and therefore be upheld as a legitimate exercise of congressional authority...."

"...Provision of Fair Housing Amendments Act (FHAA) requiring reasonable accommodations in rules to afford handicapped persons equal opportunities to rent or buy dwellings was not unconstitutionally vague; reasonable accommodations terminology had workable meaning even before Congress adopted it in FHAA, and many Courts of Appeals had interpreted provision without constitutional difficulty. Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...A violation of the Fair Housing Act (FHA) occurs when a disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings, and, thus, ripeness in the FHA context must be distinguished from ripeness cases involving unconstitutional takings or other zoning issues. U.S.C.A. Const.Amend. 5; Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

10. Ryan v. Ramsey

United States District Court, S.D. Texas. • August 01, 1996 • 936 F.Supp. 417 • 1996 WL 465325

"...Violation of Fair Housing Act (FHA) provision prohibiting housing discrimination against disabled can be established by showing either discriminatory intent or treatment or significant discriminatory effect. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

11. APPENDIX C TO PART 36—GUIDANCE ON ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY BY PUBLIC ACCOMMODATIONS AND IN COMMERCIAL FACILITIES ORIGINALLY PUBLISHED ON JULY 26, 1991.

28 CFR Pt. 36, App. C

"...The following examples illustrate the application of these principles: Section 36.501(b) restates the provisions of section 308(a)(2) of the Act, which states that injunctive relief for the failure to remove architectural barriers in existing facilities or the failure to make new construction and alterations accessible "shall include" an order to alter these facilities to make them readily accessible to and usable by persons with disabilities to the extent required by title III. The Report of the Energy and Commerce Committee notes that "an order to make a facility readily accessible to and usable by individuals with disabilities is mandatory" under this standard. H.R. Rep. No. 485, 101st Cong., 2d Sess, pt 4, at 64 (1990). Also, injunctive relief shall include, where appropriate, requiring the provision of an auxiliary aid or service, modification of a policy, or provision of alternative methods, to the extent required by title III of the Act and this part...."

12. § 3602. Definitions

42 USCA § 3602

"...As used in this subchapter-- (a) "Secretary" means the Secretary of Housing and Urban Development. (b) "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. (c) "Family" includes a single individual. (d) "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries. (e) "To rent" includes to lease,

to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (f) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title.

13. § 12132. Discrimination

42 USCA § 12132